SER-001 Request for Sheriff to Serve Court Papers

Instructions: Each county in California has a sheriff (and sometimes a marshal's office) that can serve different types of court papers, including restraining orders. Note that the sheriff cannot guarantee that they will be successful in finding the person you need served, but they will try to serve based on the information you put on this form.

- Complete this form for each set of papers you need served. You must complete a separate form for each person you need served.
- Find out where the person you need served is located. Give your papers to the sheriff or marshal's office in that county.
- You may have to pay for service of some court papers. For more information, see page 5 of this form, or go to https://selfhelp.courts.ca.gov/sheriff-serves.
- Do not use this form if you are asking the sheriff to enforce a wage garnishment order on an employer. Instead, use forms WG-001, *Application for Earnings Withholding Order*, and WG-035, *Confidential Statement of Judgment Debtor's Social Security Number*.
- If you want the sheriff to enforce a writ or levy, complete this form and form SER-001A, *Special Instructions for Writs and Levies—Attachment*.

CONFIDENTIAL

To Court Clerk: Do not file this form.

Sheriff File Number *(for sheriff to complete, if needed):*

Fill in case number:

Court Case Number:
25PDRO01741

All information is required unless it is listed as optional or does not apply to your case.

1 To the Sheriff or Marshal of *(name of county):* Riverside

2 Your Information

a. Your name *(party requesting service):* Eric Brakebill Jones

b. Your lawyer's information *(if you have one)*
Name:
Firm name:

c. Court case name: Jones v. Sayegh
(example: Garcia v. Smith)

d. Contact information for the sheriff or marshal to reach you
(Give an address where you can receive mail regularly, like a post office box, a Safe at Home address, or another safe address. If you have a lawyer, give the lawyer's information.)
Address to receive mail: 5634 Noel Drive
City: Temple City State: CA Zip: 91780
Telephone number *(optional):* 310-776-5741 Email address *(optional):* eric@recovery-compass.org

CONFIDENTIAL

This is not a court form. Do not file with the court.

3 Information About Person or Entity You Want Served

(Check a or b)

a. ☒ I ask the sheriff to serve a person *(complete section below)*

(1) Name of person: Margie Sayegh
Nicknames or aliases *(optional):*

(2) Telephone number *(optional):* (951) 316-7270

(3) Can you describe the person?

☐ No, I do *not* have any information about the person's description.

☒ Yes *(complete the section below with any information you have):*

Gender: ☐ Male ☒ Female ☐ Nonbinary

Height: 5' 6" Weight: 175 Hair color: Brown Eye color: Brown

Date of birth or age *(give estimate, if unknown):* 09/28/1961

Race/Ethnicity: Middle Eastern

Special marks or features *(tattoos, scars, etc.):* scar between two eyes

Vehicle *(type, model, year, color, plate number):* Black Chevy Tahoe 2016-2018

☐ *Check here if you are including a picture of the person.*

(4) Do you know of any safety or accessibility issues?

☐ No

☒ Yes *(complete the section below with any information you have):*

The person *(check all that apply):*

☐ Has a gun or other weapon.
☐ Has a history of violence or abuse.
☐ Has special training *(examples: military, first responder).*
☐ Is deaf or hard of hearing.
☐ Does not speak English *(list language):*
☐ Is on probation or parole.
☐ Has an aggressive animal.
☒ Has mental health issues.

☐ Add any other information about safety or accessibility that you know about:

Respondent has made verbal death threats against Petitioner ('get rid of him') and is alleged to be involved in illegal drug distribution. Respondent utilizes electronic tracking (AirTags) and has a history of evading service.

b. ☐ I ask the sheriff to serve an entity *(examples: business or government agency)*

(1) Name and type of entity:

Telephone number *(optional):*

(2) If there is a specific person who should be served, give name:

(3) If there is an agent for service of process, give name:

(4) List any safety or accessibility issues *(examples: weapons, aggressive animals, language barrier):*

CONFIDENTIAL

This is not a court form. Do not file with the court.

4 Address Where Person or Entity Should Be Served

(The sheriff typically serves during normal business hours. Check with the sheriff's office for the exact times.)

Address: 1620 Rivendel Dr ☒ Home ☐ Business

City: Corona State: CA Zip: 92883

Gate code or special instructions:

Best time to serve at this address *(example: 8 a.m.–noon):* Any time. (Most likely home 5 p.m. - 9 p.m.)

☐ *Check here if the person is in jail or prison (give name of facility):*

Alternate address *(optional)*

(If the person cannot be found at the address listed above, some sheriffs may try a second address if it's in the same county. If you have a second address for the person you want served, complete the section below.)

Address: ☐ Home ☐ Business

City: State: Zip:

Gate code or special instructions:

Best time to serve at this address *(example: 8 a.m.–noon):*

5 Information About Your Request

a. What type of court papers are you giving the sheriff to serve *(examples: summons, restraining order, eviction, small claims, bank levy, or writ of attachment)?*

Civil Harassment Restraining Order (Temporary)

b. List all forms or court papers you want served on the person in (3) a. *(optional).*

(Note: You can list each form by its form number (example: FL-100, SC-100). If there is no form number, give the title of the document. The court may have ordered you to serve certain papers. Look at the court's order and list all forms required. If you do not know which papers you need to serve, ask a lawyer, or contact your local self-help center for free information.)

1. CH-109 Notice of Court Hearing (File-Stamped), 2. CH-100 Request for Civil Harassment Restraining Orders (File-Stamped, including all Declarations and Exhibits A-D)
3. Blank CH-120 Response to Request for Civil Harassment Restraining Orders
4. CH-120-INFO How Can I Respond to a Request for Civil Harassment Restraining Orders?
5. Blank CH-250 Proof of Service of Response by Mail

c. Is there a court hearing (court date)?

☐ I don't know
☐ No
☒ Yes *(if yes, give date of hearing):* 01/12/2026

CONFIDENTIAL

This is not a court form. Do not file with the court.

5 d. Is there a deadline for service?

- ☐ I don't know
- ☐ No
- ☒ Yes *(if yes, give deadline):* 01/07/2026

e. Has the court allowed you to serve your court papers in another way besides personal service *(example: substituted service)?*

- ☐ I don't know
- ☒ No
- ☐ Yes *(if yes, include a copy of the order allowing another type of service)*

f. Is there any other information you want or need to give to the sheriff to serve your court papers?

- ☐ No
- ☒ Yes *(if yes, give information below):*

OFFICER SAFETY WARNING: Respondent has made verbal death threats ("get rid of Eric") and is alleged to be involved in drug distribution. Respondent utilizes electronic surveillance (AirTags). NOTE: Temporary Restraining Order was DENIED; these documents are for Notice of Hearing only.

6 **Enforcement of Writ or Levy**

If you want the sheriff to enforce a writ or levy, you must complete form SER-001A, *Special Instructions for Writs and Levies—Attachment*, and turn it in with this form.

(Only complete this section if you want the sheriff to enforce a writ or levy.)

Do you want the sheriff to both serve your court papers and act as levying officer?

- ☐ Yes
- ☐ No. I only want the sheriff to act as levying officer. A registered process server has or will serve my papers.

Your Signature *(party asking for service, or their lawyer)*

Date: 12/29/2025

Eric Brakebill Jones
Type or print your name

Sign your name (may be electronic)

CONFIDENTIAL

This is not a court form. Do not file with the court.

Your Next Steps

- Find out if you need to pay a fee for service by asking the court's self-help center, a lawyer, or the sheriff's office. Here are some situations where you **do not** need to pay for service:
  - If you have a fee waiver in your case (fee waiver granted by a judge on form FW-003 or FW-005).
  - If you are serving a domestic violence, elder abuse, or gun violence restraining order.
  - If you have a civil harassment, workplace violence, or school violence restraining order based on a credible threat of violence or stalking.
- Give this form and a copy of all the court papers you need served to the sheriff or marshal, including a copy of a fee waiver (if you have one). If you do not have to pay a fee to the sheriff, you can send your papers electronically. If you have to pay a fee, contact the sheriff to find out your options for turning in your request. Note that you can always turn in your request in person.
- You should get a form back from the sheriff.
  - If the sheriff was able to serve your court papers, you should receive a form (called a proof of service). **Make sure you get a copy from the sheriff and file it with the court**. Note that if there is a court stamp at the top right corner of the first page, it has already been filed and you do not need to file it with the court.
  - If the sheriff was unable to serve your court papers, you should receive a form (sometimes called declaration of due diligence) that tells you that service was unsuccessful and will give details about when the sheriff tried to serve the person. If the sheriff was unable to serve your papers, you can ask a lawyer or court's self-help center about your next steps.
- To find your local court self-help center, go to https://selfhelp.courts.ca.gov/. Self-help center staff will not act as your lawyer but may be able to give you information to help you decide what to do in your case. Services are free.

To Sheriff or Marshal

- This form is confidential and must not be made public.
- Any papers submitted with this form should be served and listed on the applicable proof of service form.
- Note that (5) b is optional and may help to identify documents that should have been submitted but were not received by your office.
- Under Government Code section 26666.2, once you've received a completed copy of this form and forms for service, you must attempt service unless:
  - Any order submitted does not have a judge's signature or other representation of a judge's signature; clerk's endorsement; or court stamp, seal, or other court endorsement; or
  - A court case number is not listed on the order, summons, or other notice.

For your protection and privacy, please press the Clear This Form button after you have printed the form.

Print this form Save this form Clear this form

Received: 12/22/2025 4:16 PM

CH-109 Notice of Court Hearing

Clerk stamps date here when form is filed.

Electronically FILED
Superior Court of California
County of Los Angeles
12/23/2025 2:29 PM
David W. Slayton
Executive Officer/Clerk of Court,
By M. Markarian, Deputy Clerk

(1) Person Seeking Protection

a. Your Full Name:
Eric Brakebill Jones

Your Lawyer (if you have one for this case):
Name: _____ State Bar No.: _____
Firm Name: _____

b. Your Address *(If you have a lawyer, give your lawyer's information. If you do not have a lawyer and want to keep your home address private, you may give a different mailing address instead. You do not have to give telephone, fax, or email.)*

Address: 5634 Noel Dr
City: Temple City State: CA Zip: 91780
Telephone: (626) 348-3019 Fax: _____
Email Address: eric@recovery-compass.org

Fill in court name and street address:

Superior Court of California, County of
Los Angeles
Pasadena Courthouse
300 East Walnut Street
Pasadena, Ca 91101

Court fills in case number when form is filed.

Case Number: 25PDRO01741

(2) Person From Whom Protection Is Sought

Full Name: Margie Sayegh

The court will complete the rest of this form.

(3) Notice of Hearing

A court hearing is scheduled on the request for restraining orders against the person in (2):

Name and address of court if different from above:

Hearing Date → Date: 1/12/2026 Time: 8:30 am
Dept.: S Room: _____

To the person in (2):

- If you attend the hearing (in person, by phone, or by videoconference) and the judge grants a restraining order against you, the order will be effective immediately, and you could be arrested if you violate the order.
- If you do not attend the hearing, the judge may still grant the restraining order that could last up to five years. After you receive a copy of the order, you could be arrested if you violate the order.

(4) Temporary Restraining Orders *(Any orders granted are on form CH-110, served with this notice.)*

a. Temporary Restraining Orders for personal conduct and stay-away orders as requested in form CH-100, *Request for Civil Harassment Restraining Orders,* are *(check only one box below):*

(1) ☐ All **GRANTED** until the court hearing.
(2) ☑ All **DENIED** until the court hearing. *(Specify reasons for denial in b, below.)*
(3) ☐ Partly **GRANTED** and partly **DENIED** until the court hearing. *(Specify reasons for denial in b, below.)*

b. Reasons for denial of some or all of those personal conduct and stay-away orders as requested in form CH-100, *Request for Civil Harassment Restraining Orders,* are:

(1) ☑ The facts as stated in form CH-100 do not sufficiently show acts of violence, threats of violence, or a course of conduct that seriously alarmed, annoyed, or harassed the person in ① and caused substantial emotional distress.

(2) ☐ Other *(specify):* ☐ As stated on Attachment 4b.

⑤ Confidential Information Regarding Minor

a. ☐ A request to keep minor's information confidential was made (see form CH-160) and **GRANTED.** (*See form CH-165,* Order on Request to Keep Minor's Information Confidential, *served with this form.)*

b. **If the request was granted, the information described in item ⑦ on the order (form CH-165) must be kept CONFIDENTIAL. The disclosure or misuse of the information is punishable as a sanction, with a fine of up to $1,000 or other court penalities.**

⑥ Service of Documents for the Person in ①

At least ☑ **five** ☐ ____ **days before the hearing**, someone age 18 or older—**not you or anyone to be protected**—must personally give (serve) a court's file-stamped copy of this form CH-109 to the person in ② along with a copy of all the forms indicated below:

a. CH-100, *Request for Civil Harassment Restraining Orders* (file-stamped)

b. ☐ CH-110, *Temporary Restraining Order* (file-stamped) **IF GRANTED**

c. CH-120, *Response to Request for Civil Harassment Restraining Orders* (blank form)

d. CH-120-INFO, *How Can I Respond to a Request for Civil Harassment Restraining Orders?*

e. ☐ CH-170, *Notice of Order Protecting Information of Minor* and CH-165, *Order on Request to Keep Minor's Information Confidential* (file-stamped) **IF GRANTED**

f. ☐ Other *(specify):* _____

Date: 12/23/2025

Timothy Martella
JUDGE
Judicial Officer

Case Number:

To the Person in ① :

- The court cannot make the restraining orders after the court hearing unless the person in ② has been personally given (served) a copy of your request and any temporary orders. To show that the person in ② has been served, the person who served the forms must fill out a proof of service form. Form CH-200, *Proof of Personal Service,* may be used.
- For information about service, read form CH-200-INFO, *What Is "Proof of Personal Service"?*
- You may ask to reschedule the hearing if you are unable to find the person in ② and need more time to serve the documents, or for other good reasons. Read form CH-115-INFO, *How to Ask for a New Hearing Date.*
- You must attend the hearing if you want the judge to make any of the orders you requested on form CH-100, *Request for Civil Harassment Restraining Orders*. Bring any evidence or witnesses you have. For more information, read form CH-100-INFO, *Can a Civil Harassment Restraining Order Help Me?*

To the Person in ② :

- If you want to respond to the request for orders in writing, file form CH-120, *Response to Request for Civil Harassment Restraining Orders,* and have someone age 18 or older—**not you or anyone to be protected**—mail it to the person in ①.
- The person who mailed the form must fill out a proof of service form. Form CH-250, *Proof of Service by Mail,* may be used. File the completed form with the court before the hearing and bring a copy with you to the court hearing.
- Whether or not you respond in writing, go to the hearing if you want the judge to hear from you before making an order. You may tell the judge why you agree or disagree with the orders requested.
- You may bring witnesses and other evidence.
- At the hearing, the judge may make restraining orders against you that could last up to five years and may order you to turn in to law enforcement, or sell to or store with a licensed gun dealer, any firearms (guns) and firearm parts that you own or possess. This includes firearm receivers and frames, and any item that may be used as or easily turned into a receiver or frame (see Penal Code section 16531). If an order is granted, you will also be prohibited from owning, possessing, or buying body armor and will have to relinquish any body armor you have.
- If you are unable to attend your court hearing or need more time to prepare your case, you may ask to reschedule your court date. Read form CH-115-INFO, *How to Ask for a New Hearing Date.*



Request for Accommodations

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office or go to www.courts.ca.gov/forms for *Disability Accommodation Request* (form MC-410). (Civ. Code, § 54.8.)

(Clerk will fill out this part.)

—Clerk's Certificate—

I certify that this *Notice of Court Hearing* is a true and correct copy of the original on file in the court.

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Date: DEC 24 2025

Clerk, by S. Apodaca-Perez, Deputy

David W. Slayton

For your protection and privacy, please press the Clear This Form button after you have printed the form.

Print this form | Save this form | Clear this form

CH-100 Request for Civil Harassment Restraining Orders

Read *Can a Civil Harassment Restraining Order Help Me?* (form CH-100-INFO before completing this form. Also fill out *Confidential CLETS Information* (form CLETS-001 with as much information as you know.

Clerk stamps date here when form is filed.

Electronically FILED by
Superior Court of California,
County of Los Angeles
12/22/2025 4:16 PM
David W. Slayton,
Executive Officer/Clerk of Court,
By Samantha Apodaca-Perez, Deputy Clerk

Assigned for all purposes to:
Timothy Martella,
(Department, PDS).

Fill in court name and street address:

Superior Court of California, County of Los Angeles
300 E. Walnut Street
Pasadena, CA 91101
Pasadena Courthouse (NORTHEAST)

Court fills in case number when form is filed.

Case Number: 25PDRO01741

(1) Person Seeking Protection

a. Your Full Name: Eric Brakebill Jones Age: 46

Your Lawyer *(if you have one for this case)*
Name: _____ State Bar No.: _____
Firm Name: _____

b. Your Address *(If you have a lawyer, give your lawyer's information. If you do not have a lawyer and want to keep your home address private, you may give a different mailing address instead. You do not have to give telephone, fax, or email.)*

Address: 5634 Noel Drive
City: Temple City State: CA Zip: 91780
Telephone: (626) 348-3019 Fax: _____
Email Address: eric@recovery-compass.org

(2) Person From Whom Protection Is Sought

Full Name: **Margie Sayegh** Age: **64**
Address *(if known)*: 1620 Rivendel Dr
City: Corona State: CA Zip: 92883

(3) Additional Protected Persons

a. Are you asking for protection for any other family or household members? ☐ Yes ☐ No *If yes, list them:*

Full Name	Gender	Age	Lives with you?	How are they related to you?
			☐ Yes ☐ No	
			☐ Yes ☐ No	
			☐ Yes ☐ No	
			☐ Yes ☐ No	

☐ *Check here if there are more persons. Attach a sheet of paper and write "Attachment 3a—Additional Protected Persons" for a title. You may use form MC-025,* Attachment.

b. Why do these people need protection? *(Explain below):*

☐ *Check here if there is not enough space for your answer. Put your complete answer on the attached sheet of paper or form MC-025 and write "Attachment 3b—Why Others Need Protection" for a title.*

This is not a Court Order.

Case Number:

(4) Relationship of Parties

How do you know the person in (2)? *(Explain below):*

☐ *Check here if there is not enough space for your answer. Put your complete answer on the attached sheet of paper or form MC-025 and write "Attachment 4—Relationship of Parties" for a title.*

Mother of my domestic partner (Nuha Sayegh) and Mother-in- Law of Fahed Sayegh

(5) Venue

Why are you filing in this county? *(Check all that apply):*

a. ☐ The person in (2) lives in this county.

b. ☒ I was harassed by the person in (2) in this county.

c. ☐ Other *(specify):* _____

(6) Other Court Cases

a. Have you or any of the persons named in (3) been involved in another court case with the person in (2)?

☐ Yes ☒ No *(If yes, check each kind of case and indicate where and when each was filed.)*

Kind of Case	Filed in *(County/State)*	Year Filed	Case Number *(if known)*
(1) ☐ Civil Harassment			
(2) ☐ Domestic Violence			
(3) ☐ Divorce, Nullity, Legal Separation			
(4) ☐ Paternity, Parentage, Child Custody			
(5) ☐ Elder or Dependent Adult Abuse			
(6) ☐ Eviction			
(7) ☐ Guardianship			
(8) ☐ Workplace Violence			
(9) ☐ Small Claims			
(10) ☐ Criminal			
(11) ☐ Other *(specify):*			

b. Are there now any protective or restraining orders in effect relating to you or any of the persons in (3) and the person in (2)? ☒ No ☐ Yes *(If yes, attach a copy if you have one.)*

(7) Description of Harassment

Harassment means violence or threats of violence against you, or a course of conduct that seriously alarmed, annoyed, or harassed you and caused you substantial emotional distress. A course of conduct is more than one act.

a. Tell the court about the last time the person in (2) harassed you.

(1) When did it happen? *(provide date or estimated date):* 08/17/2025 and ongoing and progressively worse

(2) Who else was there?
Fahed Sayegh

This is not a Court Order.

7 a. (3) How did the person in 2 harass you? *(Explain below):*

☒ *Check here if there is not enough space for your answer. Put your complete answer on the attached sheet of paper or form MC-025 and write "Attachment 7a(3)—Describe Harassment" for a title.*

See Attachment 7a(3) (MC-025 Declaration) and Exhibits A-C.

(4) Did the person in 2 use or threaten to use a gun or any other weapon?

☐ Yes ☒ No *(If yes, explain below):*

☐ *Check here if there is not enough space for your answer. Put your complete answer on the attached sheet of paper or form MC-025 and write "Attachment 7a(4)—Use of Weapons" for a title.*

(5) Were you harmed or injured because of the harassment?

☒ Yes ☐ No *(If yes, explain below):*

☐ *Check here if there is not enough space for your answer. Put your complete answer on the attached sheet of paper or form MC-025 and write "Attachment 7a(5)—Harm or Injury" for a title.*

(6) Did the police come? ☒ Yes ☐ No

If yes, did they give you or the person in 2 an Emergency Protective Order? ☐ Yes ☒ No

If yes, the order protects *(check all that apply):*

☐ Me ☐ The person in 2 ☐ The persons in 3.

(Attach a copy of the order if you have one.)

b. Has the person in 2 harassed you at other times?

☒ Yes ☐ No *(If yes, describe prior incidents and provide dates of harassment below):*

☒ *Check here if there is not enough space for your answer. Put your complete answer on the attached sheet of paper or form MC-025 and write "Attachment 7b—Previous Harassment" for a title.*

Ongoing pattern of harassment, stalking, and enabling of abuser. See Attached Declaration.

This is not a Court Order.

Check the orders you want.

(8) ☒ Personal Conduct Orders

I ask the court to order the person in (2) **not** to do any of the following things to me or to any person to be protected listed in (3) :

a. ☒ Harass, intimidate, molest, attack, strike, stalk, threaten, assault (sexually or otherwise), hit, abuse, destroy personal property of, or disturb the peace of the person.

b. ☒ Contact the person, either directly or indirectly, in **any** way, including, but not limited to, in person, by telephone, in writing, by public or private mail, by interoffice mail, by email, by text message, by fax, or by other electronic means.

c. ☒ Other *(specify):*

☐ *Check here if there is not enough space for your answer. Put your complete answer on the attached sheet of paper or form MC-025 and write "Attachment 8c—Other Personal Conduct Orders," for a title.*

Surveillance, including electronic tracking or employing third parties to monitor Petitioner.

The person in (2) will be ordered not to take any action to get the addresses or locations of any protected person unless the court finds good cause not to make the order.

(9) ☒ Stay-Away Orders

a. I ask the court to order the person in (2) to stay at least 100 yards away from *(check all that apply):*

(1) ☒ Me.
(2) ☐ The other persons listed in (3).
(3) ☒ My home.
(4) ☒ My job or workplace.
(5) ☐ My school.
(6) ☐ My children's school.
(7) ☐ My children's place of child care.
(8) ☒ My vehicle.
(9) ☐ Other *(specify):*

b. If the court orders the person in (2) to stay away from all the places listed above, will he or she still be able to get to his or her home, school, or job? ☒ Yes ☐ No *(If no, explain below):*

☐ *Check here if there is not enough space for your answer. Put your complete answer on the attached sheet of paper or form MC-025 and write "Attachment 9b—Stay-Away Orders," for a title.*

(10) Firearms (Guns), Firearm Parts, and Ammunition

Does the person in (2) own or possess any firearms (guns), firearm parts, or ammunition? This includes firearm receivers and frames, and any item that may be used as or easily turned into a receiver or frame (see Penal Code section 16531). ☒ Yes ☐ No ☐ I don't know

If the judge grants a protective order, the person in (2) will be prohibited from owning, possessing, purchasing, receiving, or attempting to purchase or receive firearms (guns), firearm parts, and ammunition while the protective order is in effect. The person in (2) will also be ordered to turn in to law enforcement, or sell to or store with a licensed gun dealer, any firearms (guns) and firearm parts within their immediate possession or control. If an order is granted, the person in (2) will also be prohibited from owning, possessing, or buying body armor and would have to relinquish any they have.

This is not a Court Order.

Case Number:

(11) ☒ Temporary Restraining Order

I request that a Temporary Restraining Order (TRO) be issued against the person in (2) to last until the hearing. I am presenting form CH-110, *Temporary Restraining Order,* for the court's signature together with this *Request.*

Has the person in (2) been told that you were going to go to court to seek a TRO against him or her?

☐ Yes ☒ No *(If you answered no, explain why below):*

☒ *Check here if there is not enough space for your answer. Put your complete answer on the attached sheet of paper or form MC-025 and write "Attachment 11—Temporary Restraining Order" for a title.*

Notice would create an immediate danger of retaliation and flight before service. Respondent has a history of evading service and escalating harassment when challenged.

(12) ☐ Request to Give Less Than Five Days' Notice of Hearing

You must have your papers personally served on the person in (2) at least five days before the hearing, unless the court orders a shorter time for service. (Form CH-200-INFO explains What Is "Proof of Personal Service"? *Form CH-200,* Proof of Personal Service, *may be used to show the court that the papers have been served.)*

If you want there to be fewer than five days between service and the hearing, explain why below:

☐ *Check here if there is not enough space for your answer. Put your complete answer on the attached sheet of paper or form MC-025 and write "Attachment 12—Request to Give Less Than Five Days' Notice" for a title.*

(13) ☒ No Fee for Filing or Service

a. ☒ There should be no filing fee because the person in (2) has used or threatened to use violence against me, has stalked me, or has acted or spoken in some other way that makes me reasonably fear violence.

b. ☒ The sheriff or marshal should serve (notify) the person in (2) about the orders for free because my request for orders is based on unlawful violence, a credible threat of violence, or stalking.

c. ☐ There should be no filing fee and the sheriff or marshal should serve the person in (2) for free because I am entitled to a fee waiver. *(You must complete and file form FW-001,* Application for Waiver of Court Fees and Costs *.)*

(14) ☐ Lawyer's Fees and Costs

I ask the court to order payment of my ☐ lawyer's fees ☐ Court costs.

The amounts requested are:

Item	Amount	Item	Amount
	$		$
	$		$
	$		$

☐ *Check here if there are more items. Put the items and amounts on the attached sheet of paper or form MC-025 and write "Attachment 14—Lawyer's Fees and Costs" for a title.*

This is not a Court Order.

Case Number:

(15) ☐ Possession and Protection of Animals

I ask the court to order the following:

a. ☐ That I be given the sole possession, care, and control of the animals listed below, which I own, possess, lease, keep, or hold, or which reside in my household.
(Identify animals by, e.g., type, breed, name, color, sex.)

I request sole possession of the animals because *(specify good cause for granting order)*:

☐ *Check here if there is not enough space for your answer. Put your complete answer on the attached sheet of paper or form MC-025 and write "Attachment 15a—Possession of Animals" for a title.*

b. ☐ That the person in (2) must stay at least _____ yards away from, and not take, sell, transfer, encumber, conceal, molest, attack, strike, threaten, harm, or otherwise dispose of, the animals listed above.

(16) ☐ Additional Orders Requested

I ask the court to make the following additional orders *(specify)*:

☐ *Check here if there is not enough space for your answer. Put your complete answer on the attached sheet of paper or form MC-025 and write "Attachment 16—Additional Orders Requested," for a title.*

(17) Number of pages attached to this form, if any: 26

Date: 12-19-2025

Lawyer's name (if any)

Lawyer's signature

I declare under penalty of perjury under the laws of the State of California that the information above and on all attachments is true and correct.

Date: 12-19-2025

Eric Brakebill Jones
Type or print your name

Sign your name

This is not a Court Order.

ERIC BRAKEBILL JONES
5634 Noel Drive
Temple City, CA 91780
(626) 348-3019
eric@recovery-compass.org
ERIC BRAKEBILL JONES, PETITIONER IN PRO PER

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF LOS ANGELES
PASADENA COURTHOUSE (NORTHEAST DISTRICT)
300 EAST WALNUT STREET, PASADENA, CA 91101

ERIC BRAKEBILL JONES,	)	Case No.: _____
Petitioner,	)	**REQUEST FOR CIVIL HARASSMENT**
vs.	)	**RESTRAINING ORDERS (CH-100)**
MARGIE SAYEGH,	)	
	)	DATE: _____
Respondent.	)	TIME: _____
	)	DEPT: _____
	)	
	)	

DECLARATION OF ERIC BRAKEBILL JONES

I, ERIC BRAKEBILL JONES, declare as follows:

1. PARTIES AND JURISDICTION

I am over the age of 18 years. I reside in Los Angeles County, California.

I am not in a domestic relationship with Respondent MARGIE SAYEGH.

This is a civil harassment matter pursuant to Code of Civil Procedure Section 527.6. Respondent MARGIE SAYEGH is the mother of FAHED SAYEGH, the estranged husband of my domestic partner, NUHA SAYEGH.

2. SUMMARY OF HARASSMENT AND THREATS

Respondent MARGIE SAYEGH has engaged in a course of conduct that includes:

1. A credible threat of violence made in August 2025;
2. Electronic stalking through covert AirTag tracking devices; and
3. Ongoing harassment and retaliation for my support of NUHA SAYEGH.

3. THE CREDIBLE THREAT OF VIOLENCE (August 2025)

In or about September 8, 2025, Respondent made a statement that constitutes a credible threat of violence against me. According to information provided by MIA SAYEGH (age 13), MIA overheard Respondent state words to the effect of:

"Let's meet for lunch tomorrow and figure out how to get rid of Eric."

A declaration from NUHA SAYEGH confirming MIA's report is attached as Exhibit D. Evidence of the threatening communication is attached as Exhibit A.

4. ELECTRONIC STALKING (AirTag Tracking)

On or about September 13, 2025, an Apple AirTag tracking device was discovered on my vehicle. This device was placed covertly without my knowledge or consent. A similar AirTag was discovered on NUHA SAYEGH's vehicle. Screenshots from the AirGuard application are attached as Exhibit B.

5. MOTIVE: RETALIATION FOR EXPOSING CRIMINAL CONDUCT

Respondent's threatening and harassing conduct toward me is motivated by retaliation. I have been the primary advocate for NUHA SAYEGH in her efforts to escape an abusive marriage to FAHED SAYEGH. Respondent views me as a threat to her family's interests and has made clear her desire to remove me from NUHA SAYEGH's life.

6. ORDERS REQUESTED

I respectfully request that the Court issue the following orders:

A. PERSONAL CONDUCT ORDERS - Order Respondent to not harass, stalk, threaten, or contact Petitioner directly or indirectly.

B. STAY-AWAY ORDERS - Order Respondent to stay at least 100 yards away from Petitioner and Petitioner's home, vehicle, and workplace.

C. NO ELECTRONIC SURVEILLANCE - Order Respondent not to use any electronic devices to track or monitor Petitioner's location.

7. DESCRIPTION OF HARASSMENT - SAFETY RISKS

Exhibit C - Evidence of Controlled Substance Distribution documents Respondent MARGIE SAYEGH's involvement in the distribution of pharmaceutical controlled substances to her son FREDDY SAYEGH. This evidence demonstrates Respondent's disregard for the law and willingness to engage in criminal conduct, which directly bears on the safety risks she poses to Petitioner.

Respondent's drug distribution activity, combined with her threat to "get rid of" me and the covert electronic surveillance, demonstrates a pattern of dangerous behavior that requires immediate court intervention.

8. IMPACT ON MINOR CHILDREN

Respondent's conduct has caused harm to the minor children MIA (age 13) and JORDAN (age 6). MIA has stated that she feels "unsafe" around Respondent. MIA has been forced to witness threatening conduct by Respondent.

9. TEMPORARY RESTRAINING ORDER REQUESTED

I request a TRO be issued immediately without notice because Respondent has made a credible threat of violence and demonstrated capability for covert surveillance. Advance notice would increase risk to my safety.

10. NOTICE OF RELATED CASE (CM-015 DATA)

Related Case: Sayegh v. Sayegh

Case Number: 25PDFL01441

Court: Los Angeles Superior Court (Pasadena)

Relationship: DVRO proceeding involving Respondent's son FAHED SAYEGH

This case involves the same family members. Petitioner files this Notice to avoid conflicting rulings between this CH-100 proceeding and the DVRO matter.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: December 18, 2025

Location: Temple City, California

ERIC BRAKEBILL JONES

Petitioner, In Pro Per

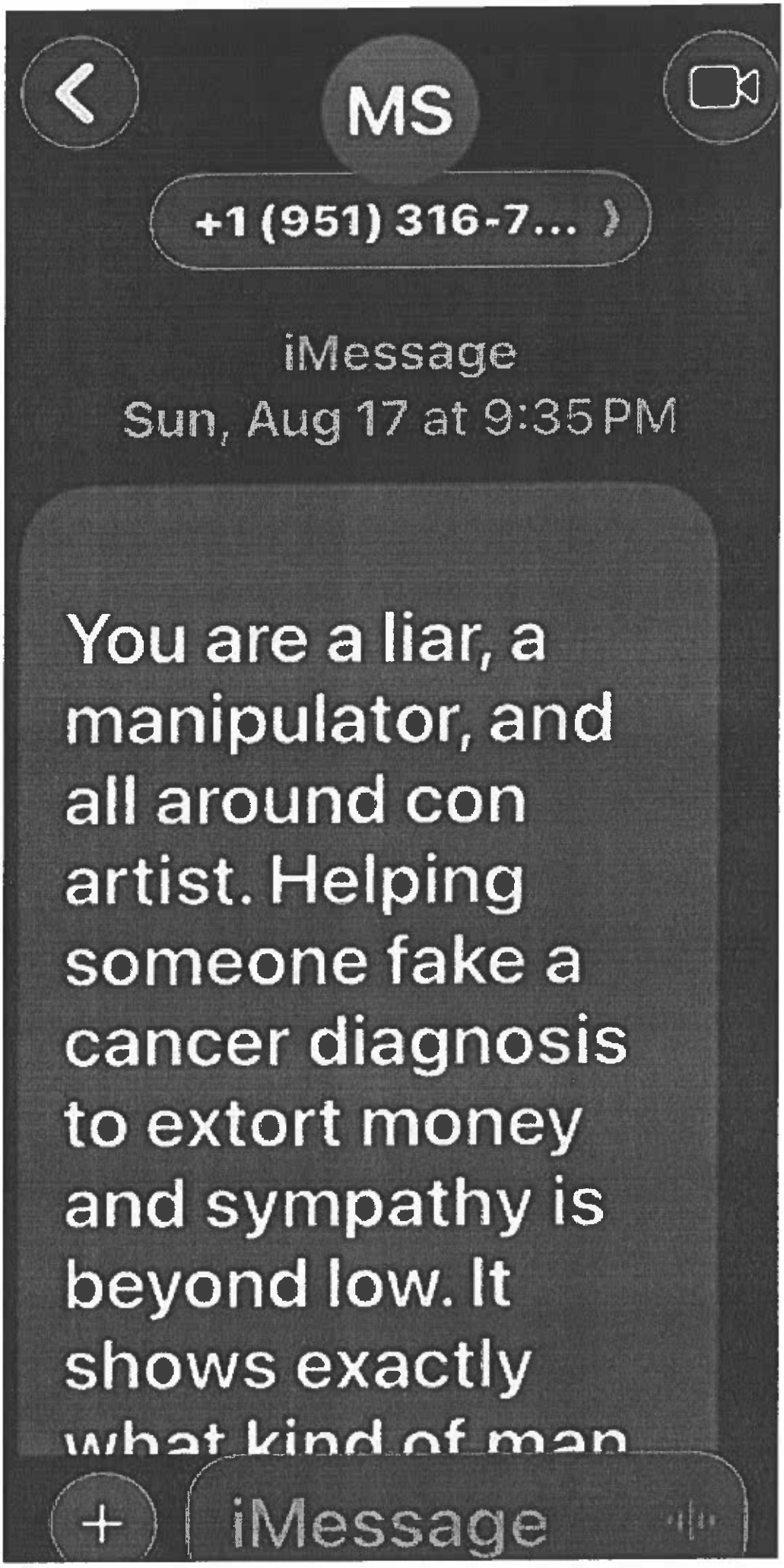
EXHIBITS ATTACHED:

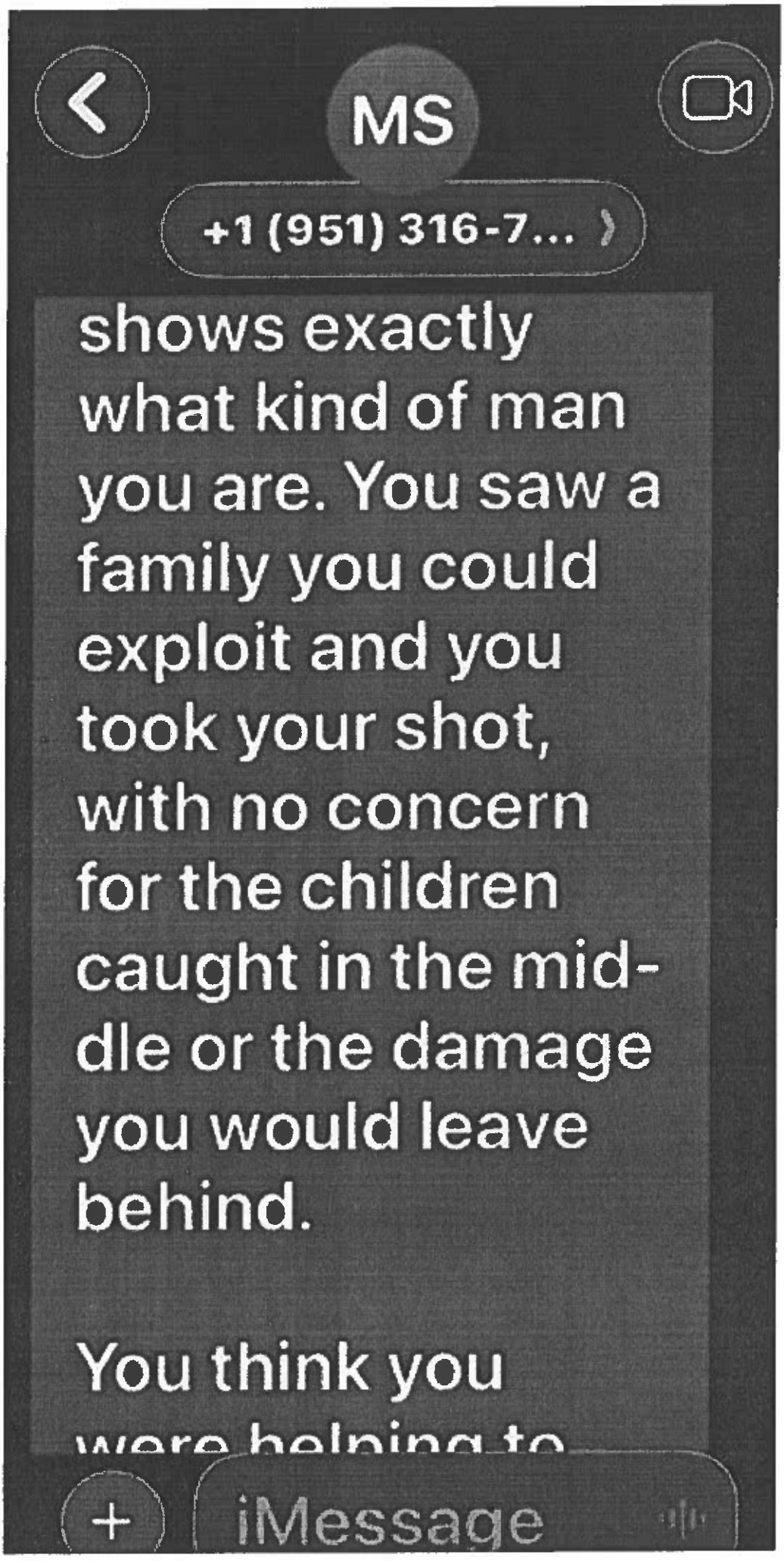
Exhibit A - SMS Text Message (Margie Threat, August 2025)

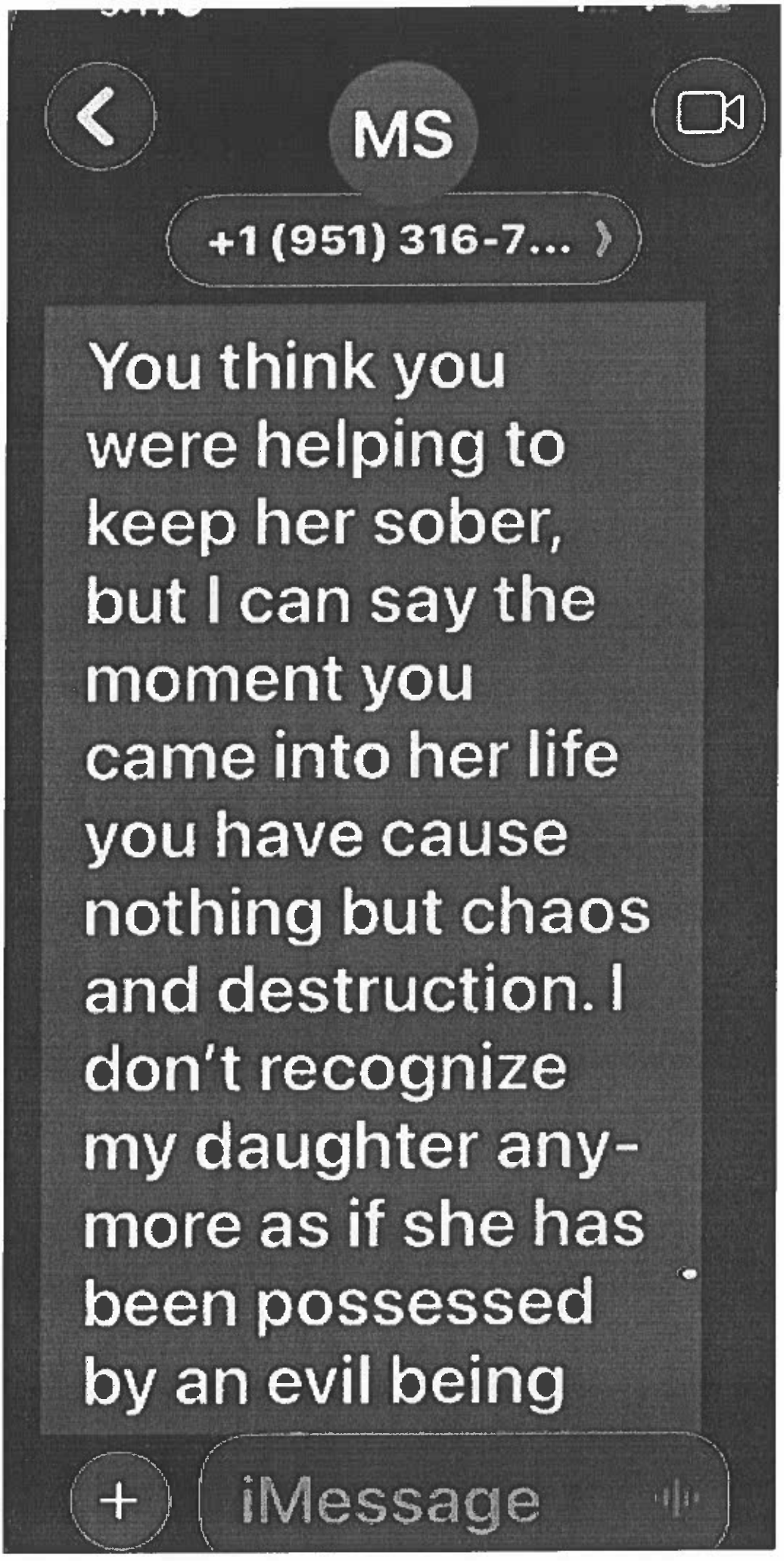
Exhibit B - AirGuard iOS Screenshots (AirTag Tracking)

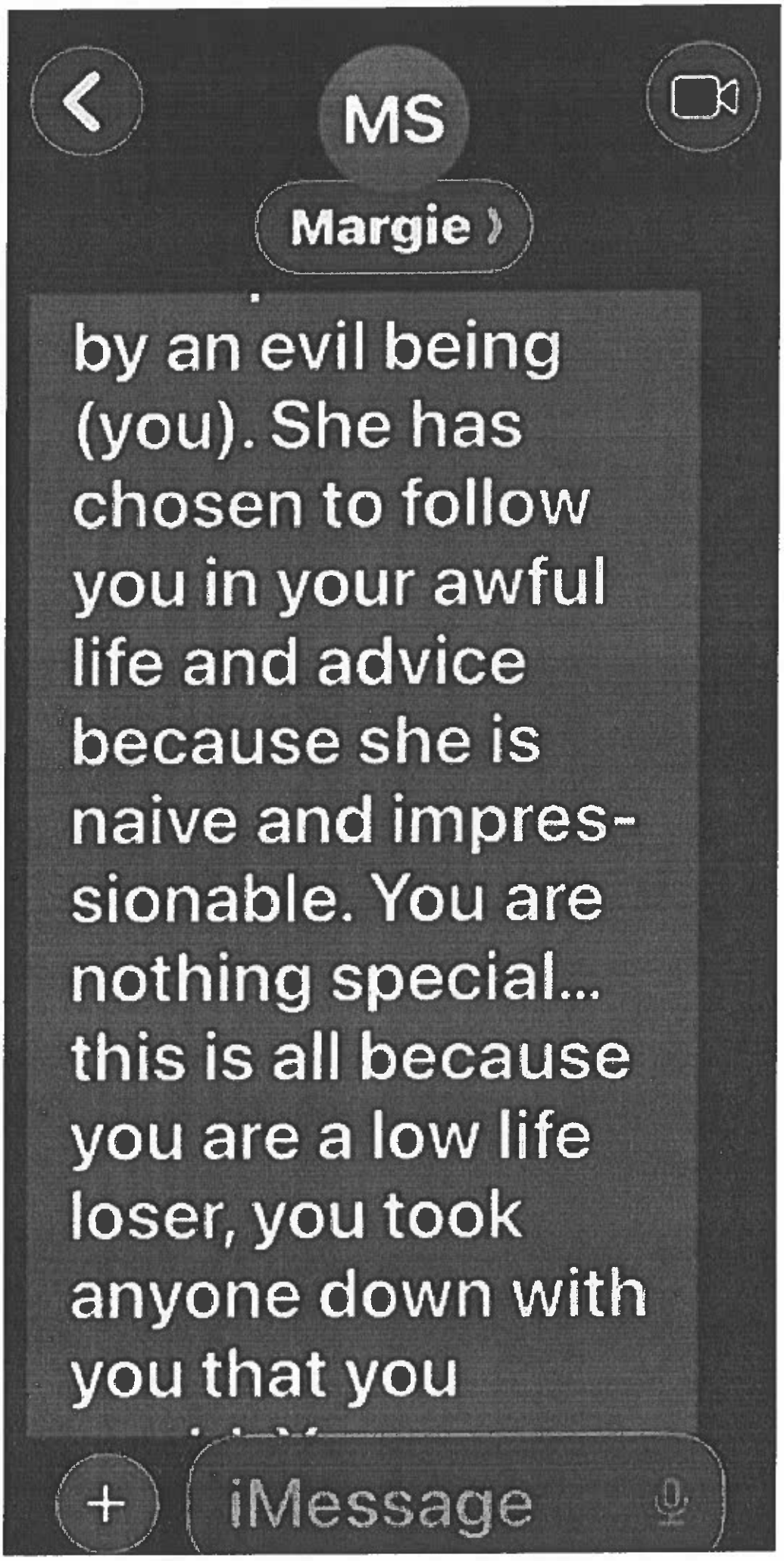
Exhibit C - Evidence of Controlled Substance Distribution

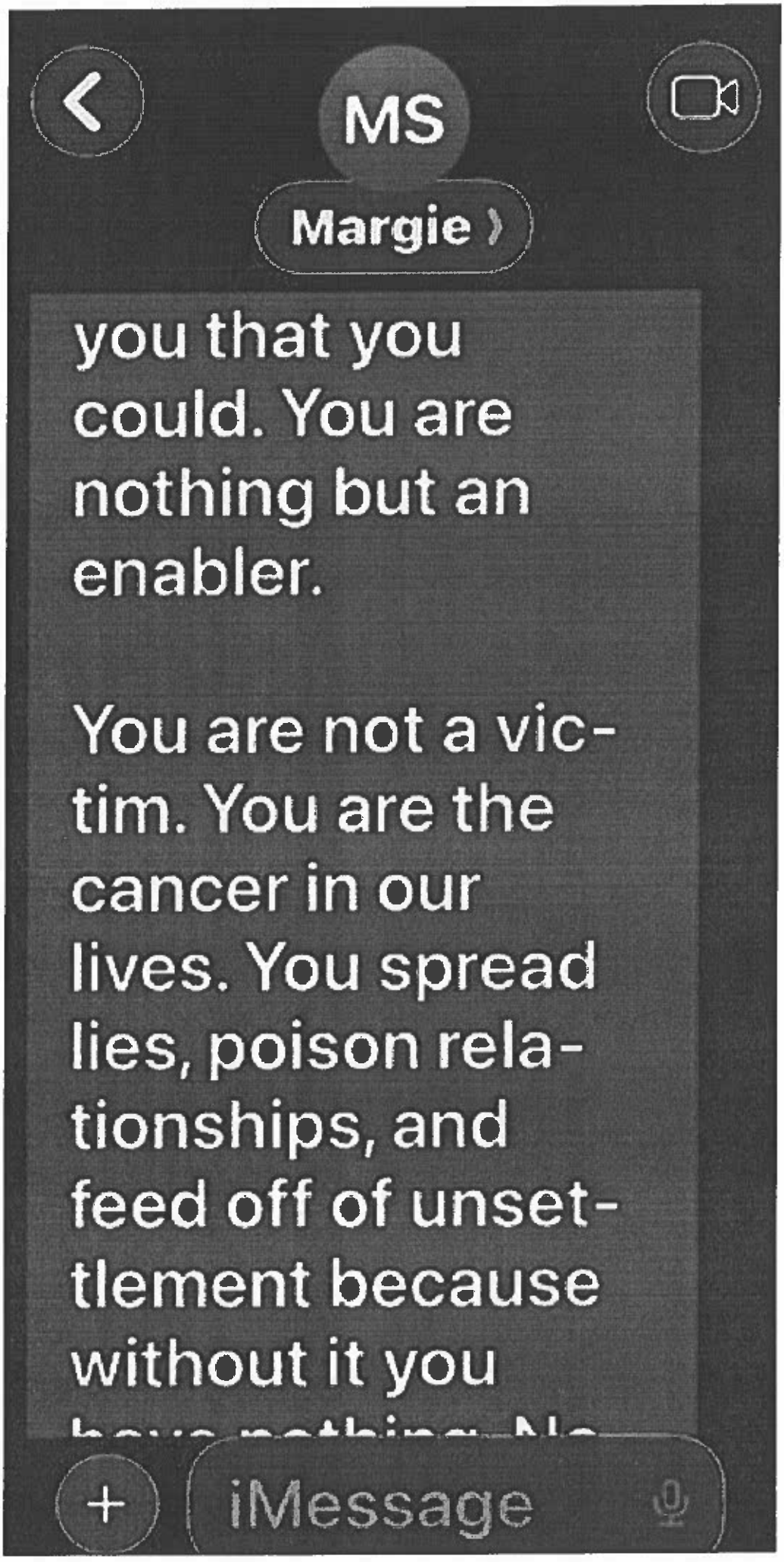
Exhibit D - Declaration of Nuha Sayegh

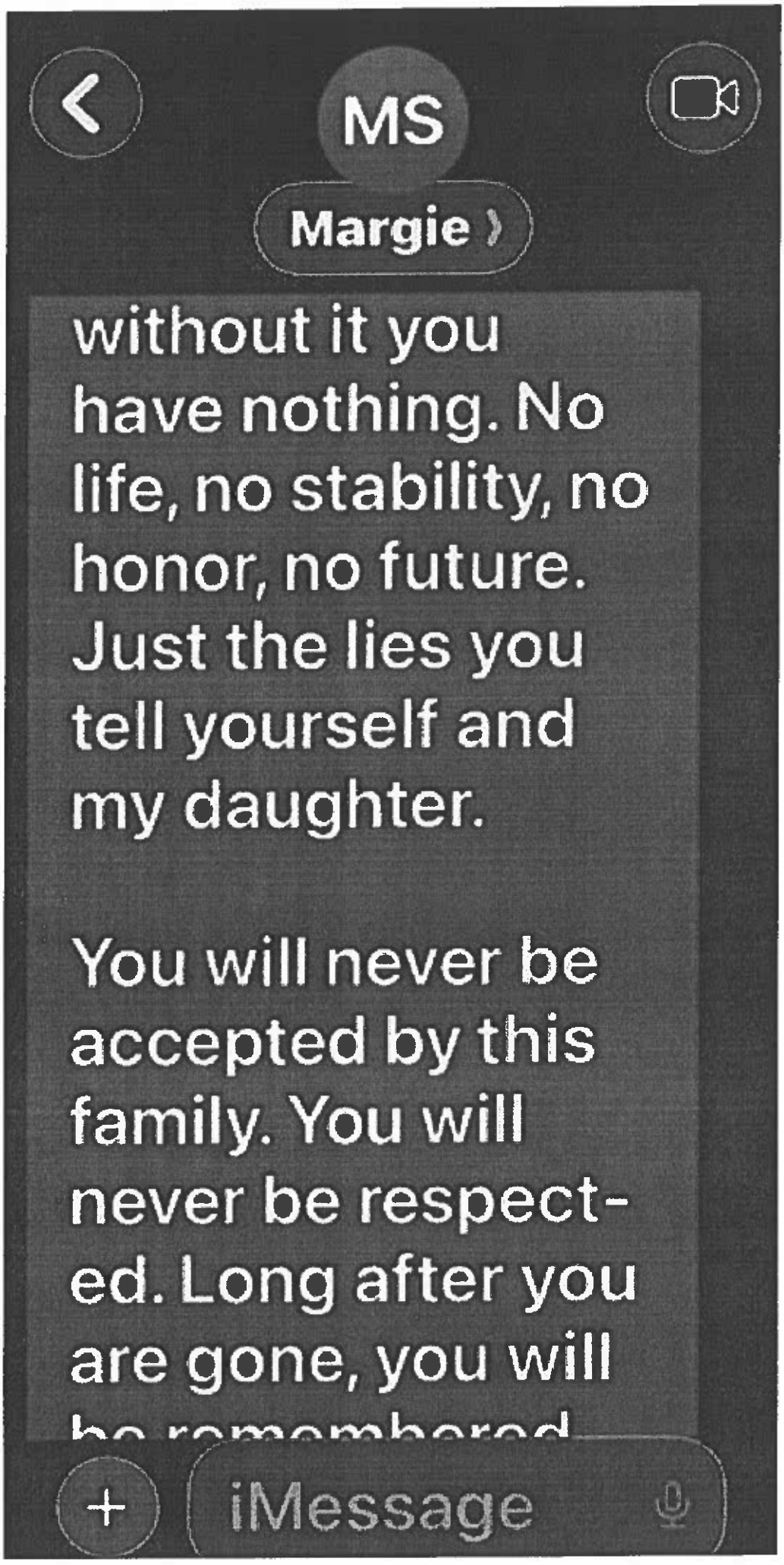

MS
+1 (951) 316-7...
iMessage
Sun, Aug 17 at 9:35 PM
You are a liar, a manipulator, and all around con artist. Helping someone fake a cancer diagnosis to extort money and sympathy is beyond low. It shows exactly
iMessage

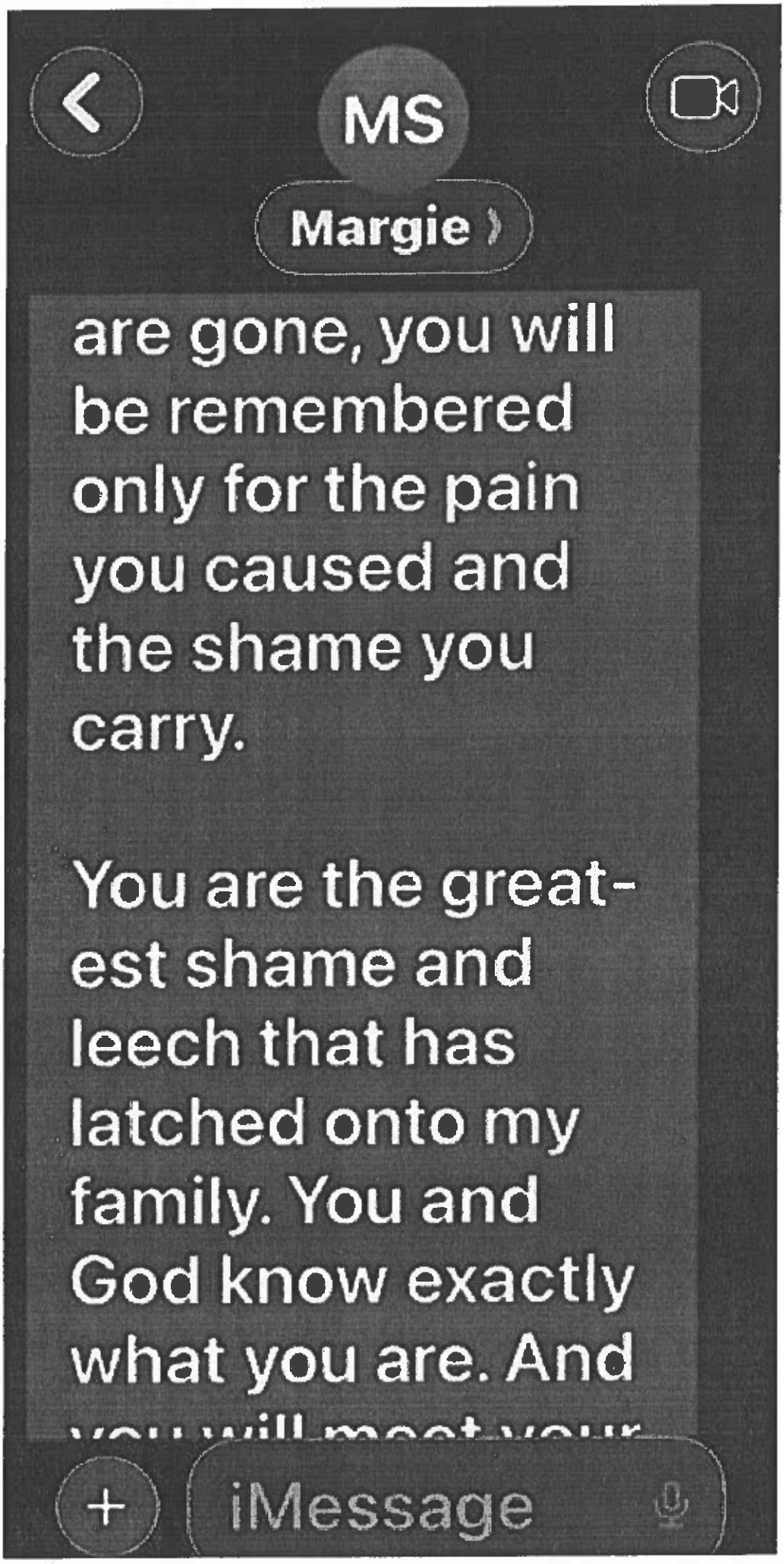

MS
+1 (951) 316-7...
shows exactly what kind of man you are. You saw a family you could exploit and you took your shot, with no concern for the children caught in the mid-dle or the damage you would leave behind.
You think you
iMessage

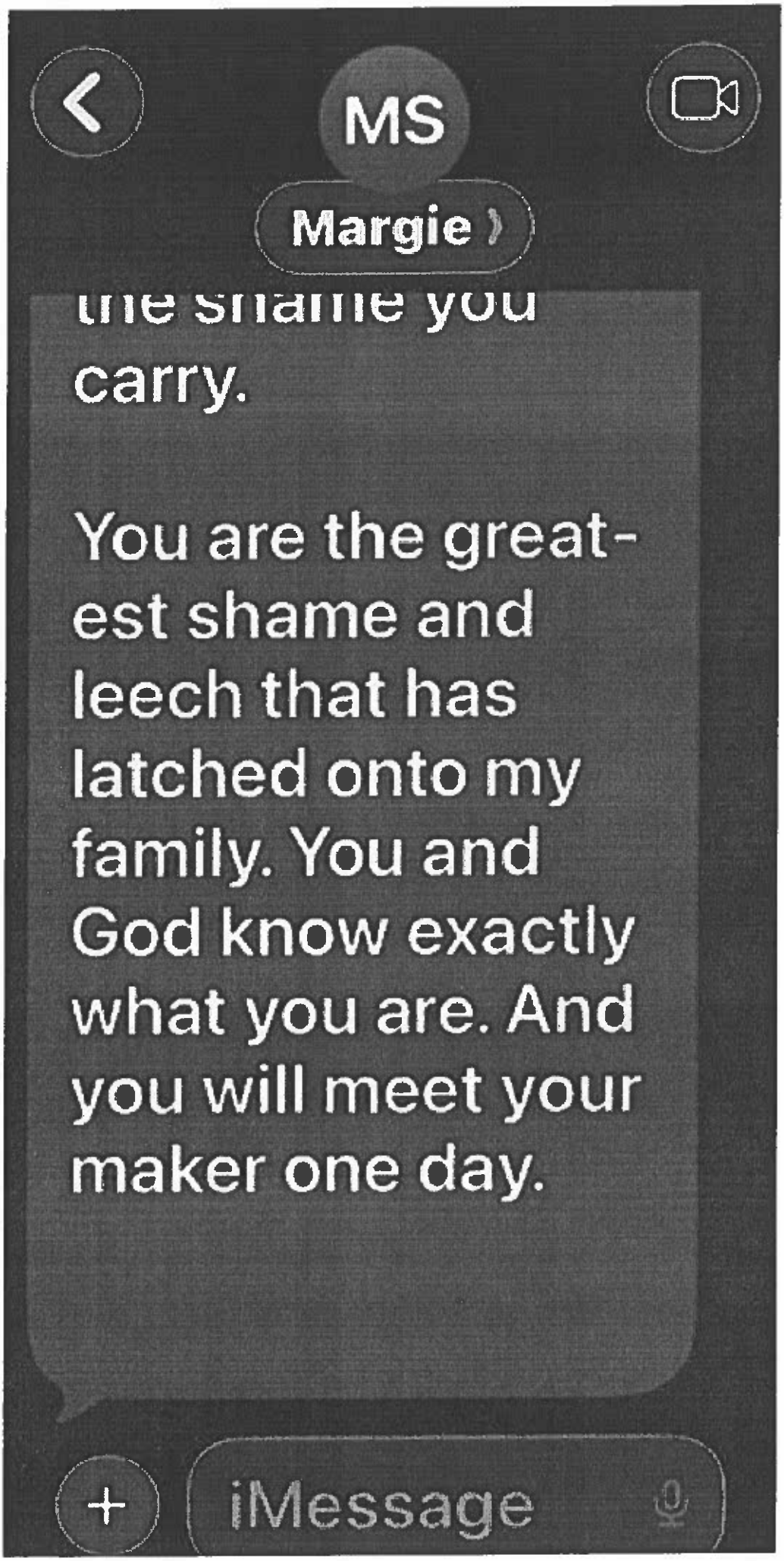

MS
+1 (951) 316-7...
You think you were helping to keep her sober, but I can say the moment you came into her life you have cause nothing but chaos and destruction. I don't recognize my daughter any-more as if she has been possessed by an evil being
iMessage

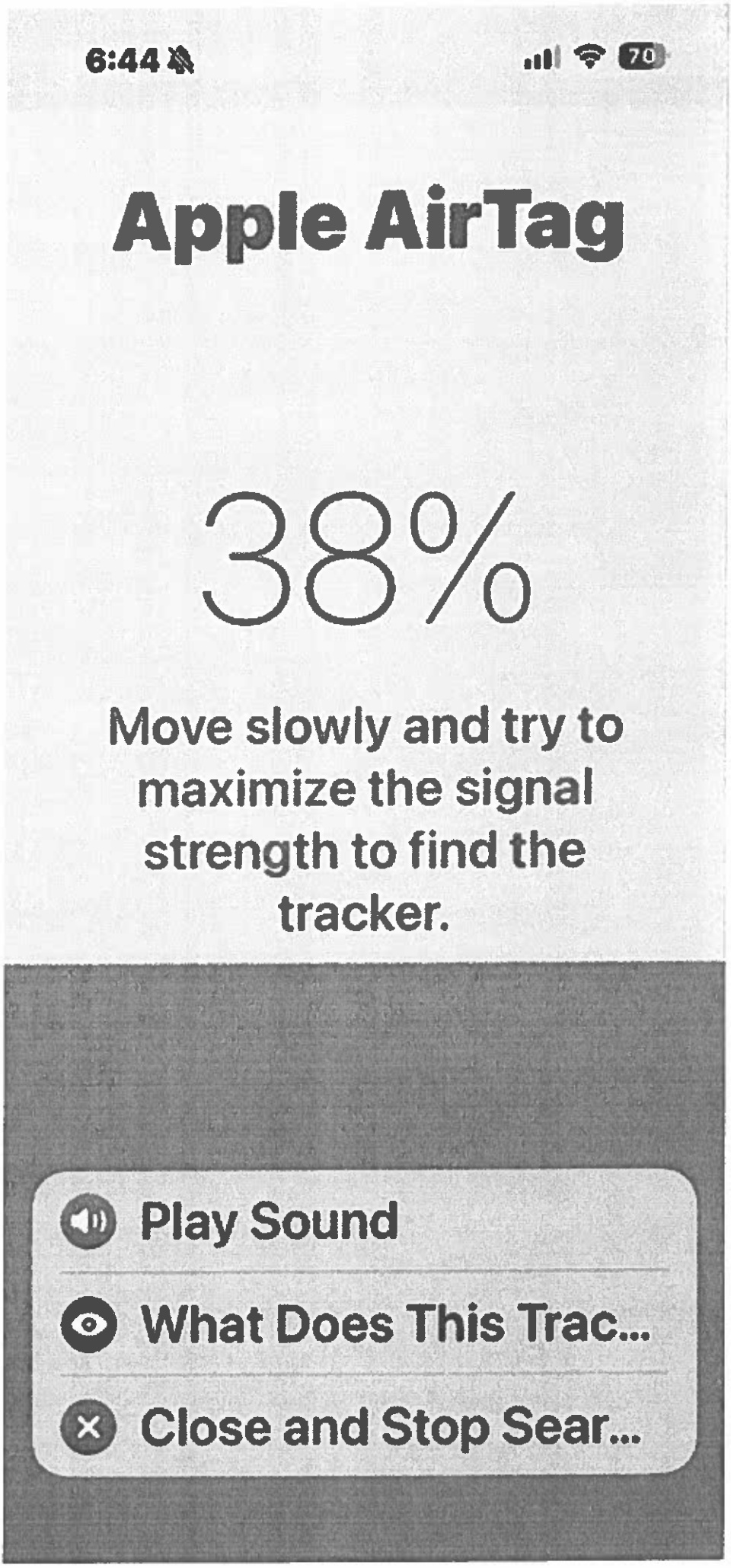

MS
Margie
by an evil being (you). She has chosen to follow you in your awful life and advice because she is naive and impressionable. You are nothing special... this is all because you are a low life loser, you took anyone down with you that you
iMessage


MS
Margie
you that you could. You are nothing but an enabler.
You are not a victim. You are the cancer in our lives. You spread lies, poison relationships, and feed off of unsettlement because without it you
iMessage


MS
Margie
without it you have nothing. No life, no stability, no honor, no future. Just the lies you tell yourself and my daughter.
You will never be accepted by this family. You will never be respect-ed. Long after you are gone, you will
iMessage


MS
Margie
are gone, you will be remembered only for the pain you caused and the shame you carry.
You are the great-est shame and leech that has latched onto my family. You and God know exactly what you are. And
iMessage


MS
Margie
the shame you
carry.
You are the great-
est shame and
leech that has
latched onto my
family. You and
God know exactly
what you are. And
you will meet your
maker one day.
iMessage


6:44
70
Apple AirTag
38%
Move slowly and try to maximize the signal strength to find the tracker.
Play Sound
What Does This Trac...
Close and Stop Sear...

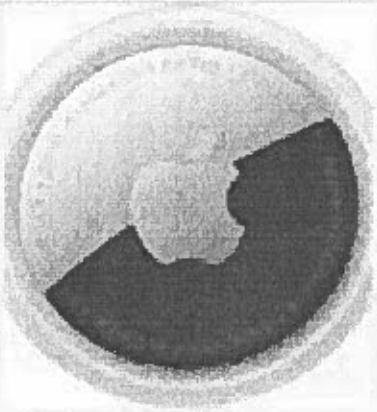
6:45
AirGuard

Apple AirTag Tracke

AI Mode | All | Shopping | Images | Videc

Map | Iphone | Gps | Wit

Sponsored



Apple AirTag | Verizon

$29.99

Verizon

4.8 ★★★★★

Shop now

SALE



Pick up today

Apple AirTag (1 Pack)

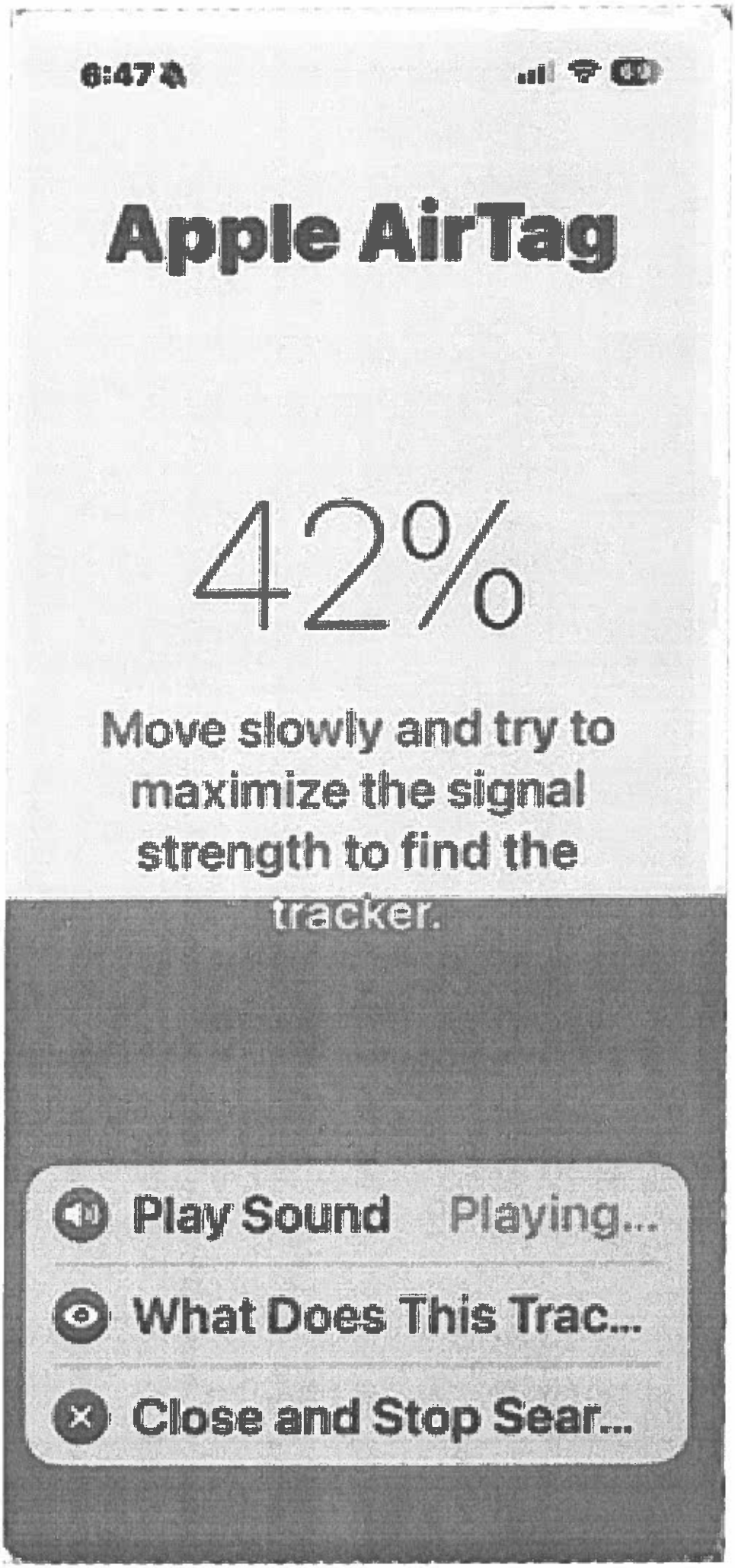
$24.99 ~~$30~~

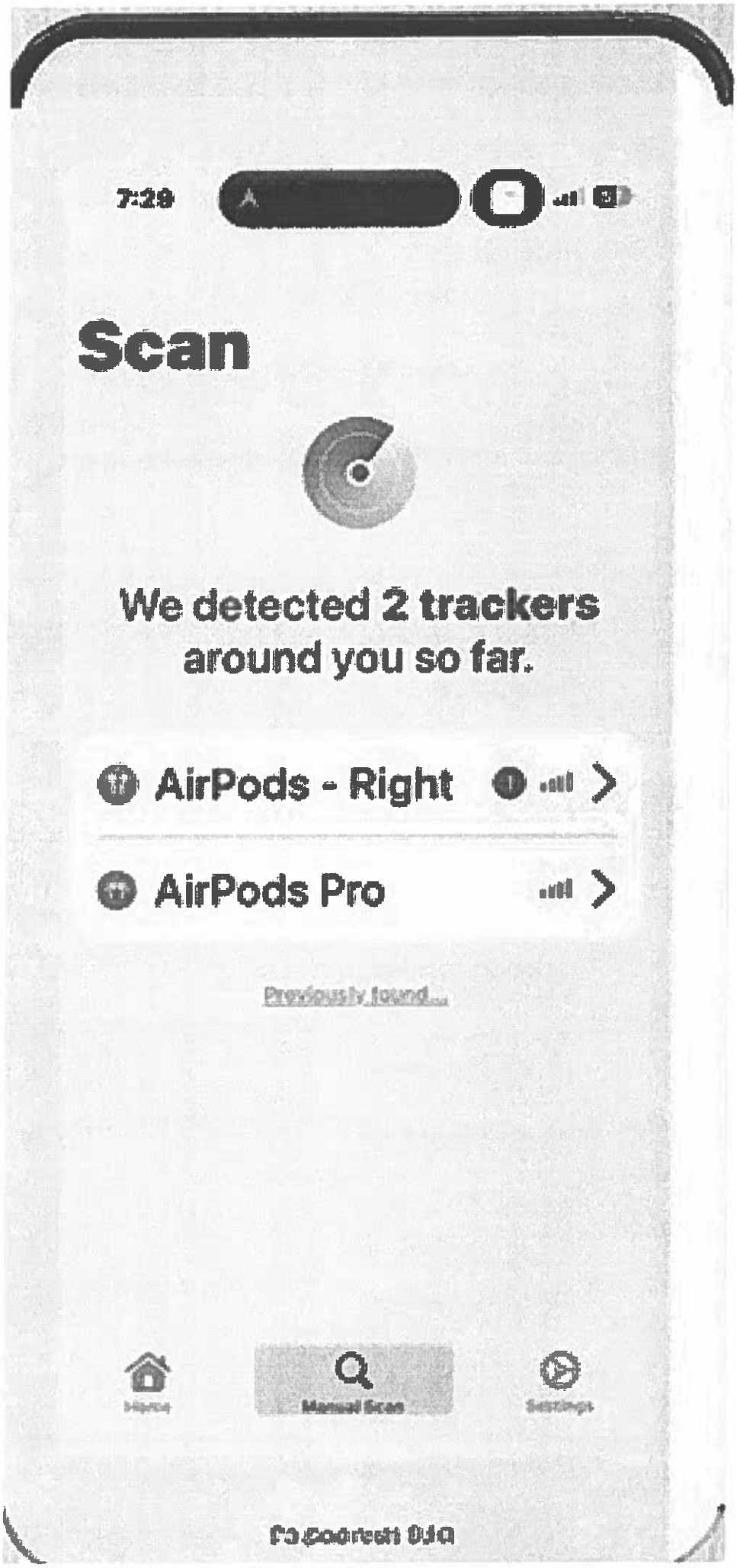
Target

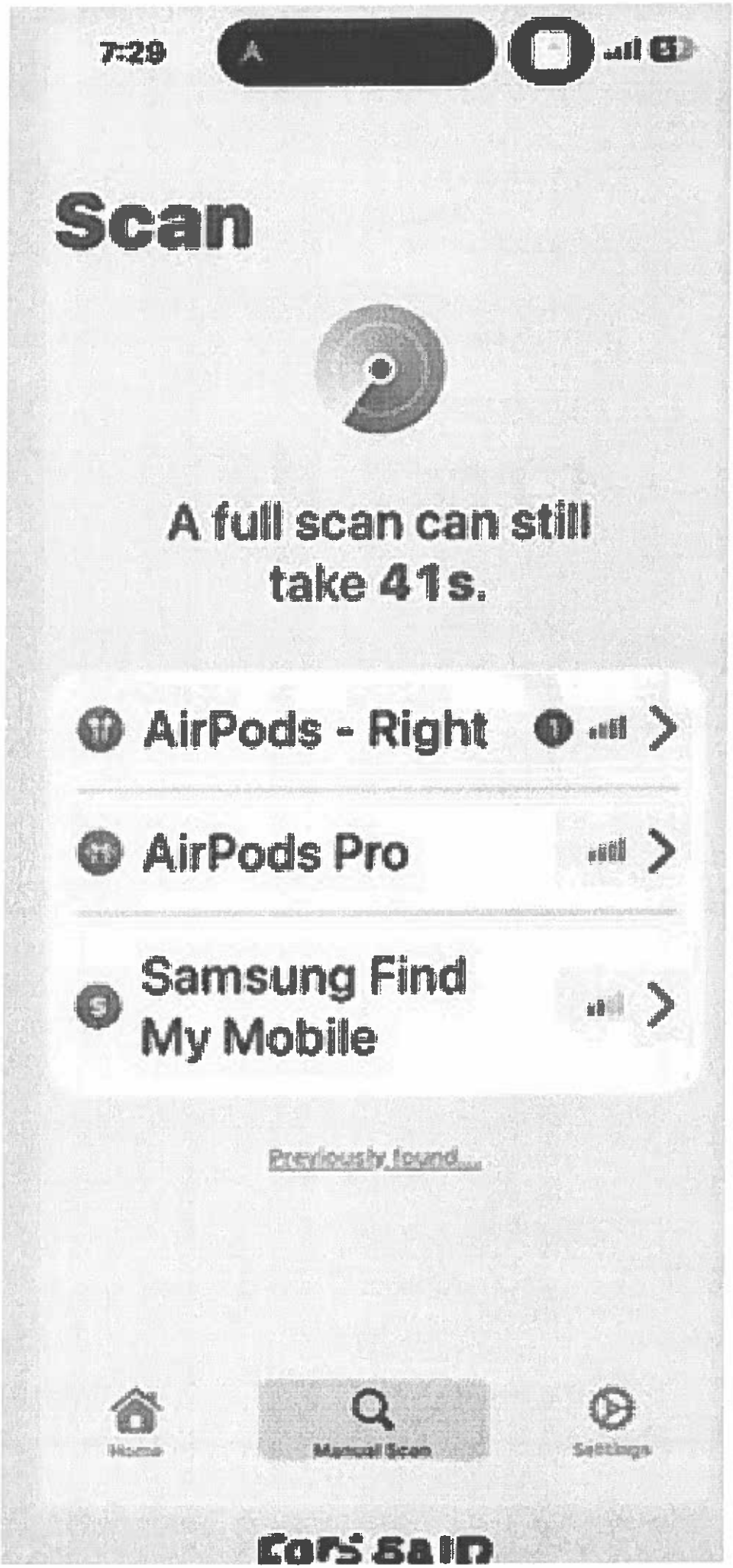
4.8 ★★★★★

Shop now




6:47
Apple AirTag
42%
Move slowly and try to maximize the signal strength to find the tracker.
Play Sound
Playing...
What Does This Trac...
Close and Stop Sear...


7:29
Scan
We detected 2 trackers around you so far.
AirPods - Right
AirPods Pro
Previously found...
Manual Scan

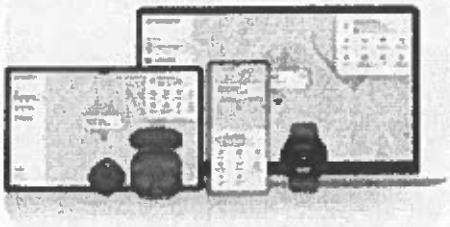

7:29
Scan
A full scan can still take 41s.
AirPods - Right
AirPods Pro
Samsung Find My Mobile
Previously found...
Home
Manual Scan
Settings

7:33

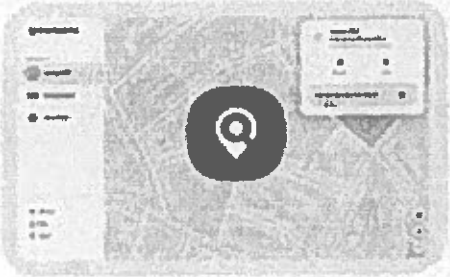
Samsung Find My... ×

All AI Mode All Forums Short videos Flights W

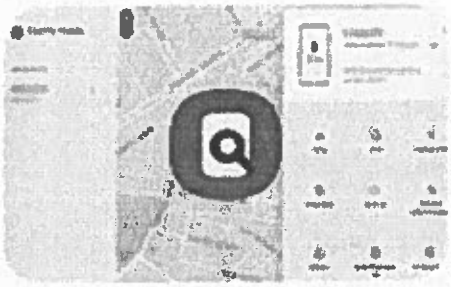
Smartthings Samsung devices Sm



Find Your Lost Devices with...
Samsung



What is SmartThings Find (Fi...
Samsung



What is Find My Mobile?
Samsung



Use Find My Mobile to find a...
CNET

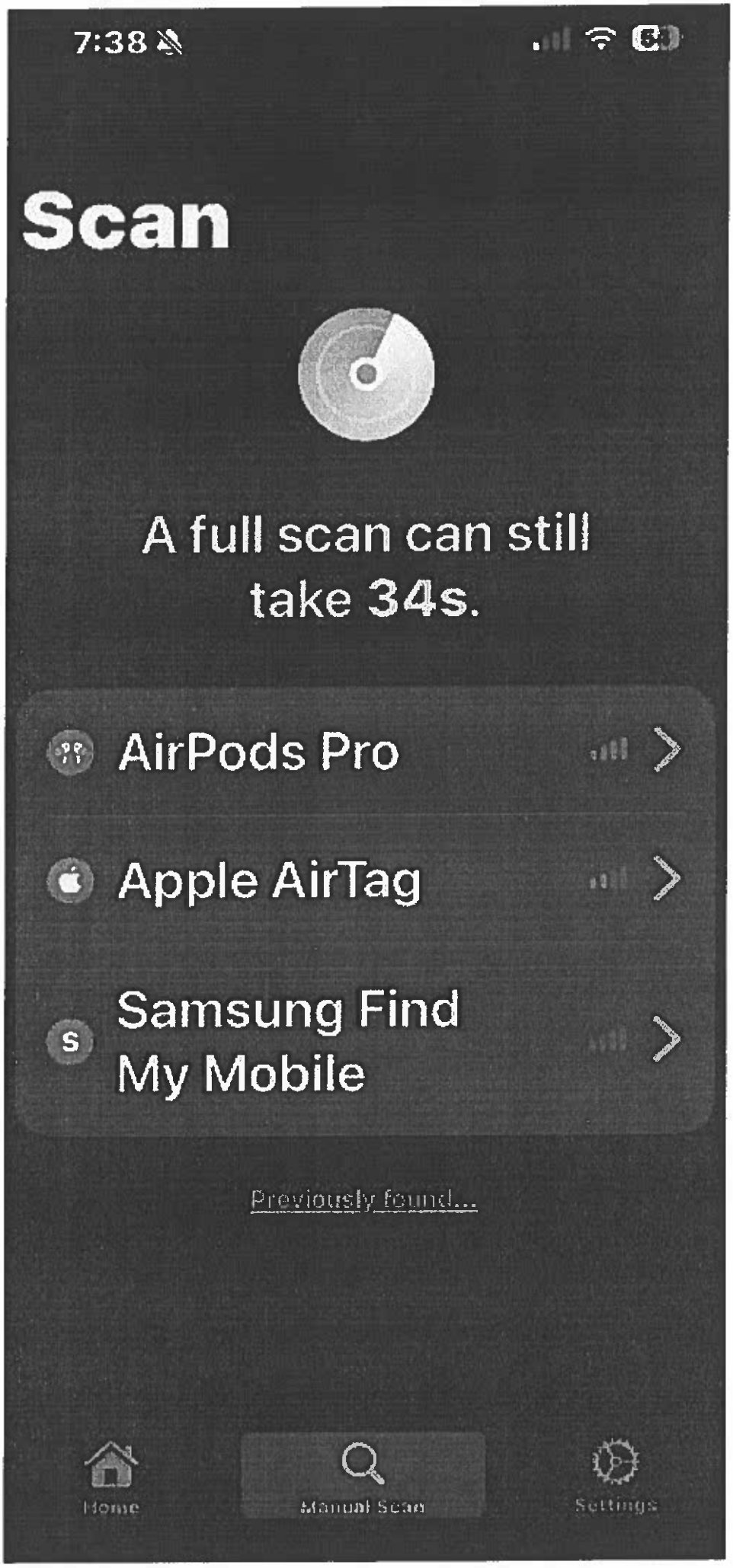


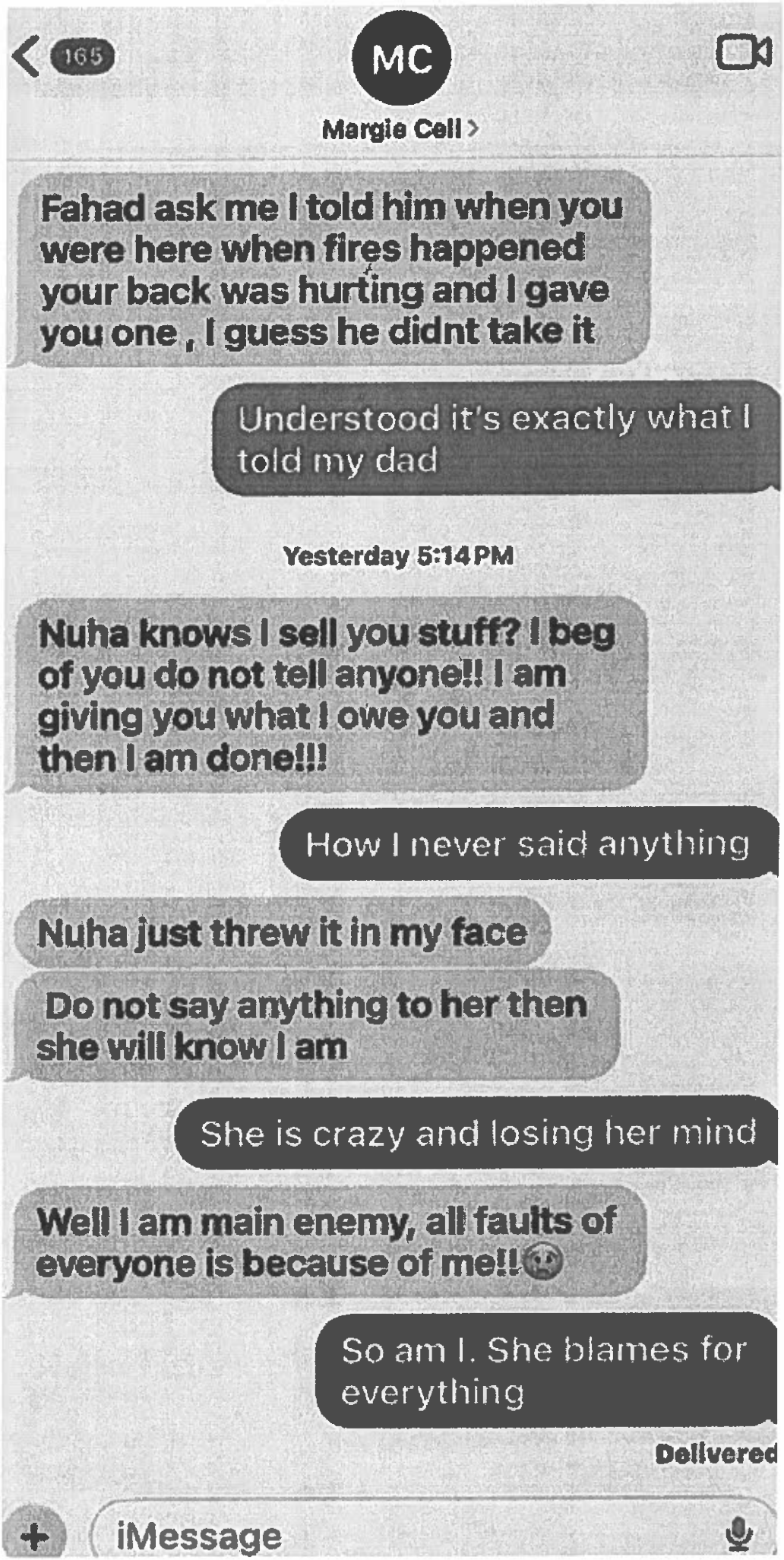
Samsung Find | Apps &...
Samsung



Related searches

Locate Human Wallpaper Europe on Unsplash Compilation


7:38
Scan
A full scan can still take 34s.
AirPods Pro
Apple AirTag
Samsung Find My Mobile
Previously found...
Home
Manual Scan
Settings


165
MC
Margie Cell >
Fahad ask me I told him when you were here when fires happened your back was hurting and I gave you one , I guess he didnt take it
Understood it's exactly what I told my dad
Yesterday 5:14 PM
Nuha knows I sell you stuff? I beg of you do not tell anyone!! I am giving you what I owe you and then I am done!!!
How I never said anything
Nuha just threw it in my face
Do not say anything to her then she will know I am
She is crazy and losing her mind
Well I am main enemy, all faults of everyone is because of me!!
So am I. She blames for everything
Delivered
iMessage

NUHA SAYEGH
5132 Rosemead Blvd.
San Gabriel, CA 91776
(626) 348-3039
nuhasayegh.ca@gmail.com
NUHA SAYEGH, DECLARANT

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF LOS ANGELES
PASADENA COURTHOUSE

ERIC BRAKEBILL JONES,	) Case No.: _____
Petitioner,	) **DECLARATION OF NUHA SAYEGH**
vs.	) **IN SUPPORT OF CH-100**
MARGIE SAYEGH,	)
	) DATE: _____
Respondent.	) TIME: _____
	) DEPT: _____
	)
	)

DECLARATION OF NUHA SAYEGH

I, NUHA SAYEGH, declare as follows:

1. PERSONAL KNOWLEDGE

I am over the age of 18 years and am competent to testify to the matters stated herein. I have personal knowledge of the facts set forth in this declaration.

2. RELATIONSHIP TO PARTIES

I am the domestic partner of Petitioner ERIC BRAKEBILL JONES. Respondent MARGIE SAYEGH is the mother-in-law of my estranged husband, FAHED SAYEGH.

3. THE THREAT TO PETITIONER'S LIFE

On or about September 8, 2025, my daughter MIA (age 13) disclosed to me that she had overheard a conversation between Respondent MARGIE SAYEGH and my estranged husband FAHED SAYEGH.

MIA reported that she heard Respondent state words to the effect of:

"Let's meet for lunch tomorrow and figure out how to get rid of Eric."

When MIA reported this conversation to me, she appeared visibly distressed and frightened. MIA stated that she felt "unsafe" around Respondent MARGIE SAYEGH. This statement was made to me spontaneously by MIA shortly after she overheard the conversation. I believe this statement constitutes a credible threat of violence against Petitioner ERIC BRAKEBILL JONES.

4. ELECTRONIC STALKING AND SURVEILLANCE

On or about September 13, 2025, I discovered an Apple AirTag tracking device that had been covertly placed on my vehicle. Screenshots documenting this unauthorized tracking are attached as Exhibit B.

Additionally, a similar AirTag tracking device was discovered on Petitioner ERIC BRAKEBILL JONES's vehicle around the same time. I believe Respondent MARGIE SAYEGH placed or directed the placement of these tracking devices.

5. DRUG DISTRIBUTION ACTIVITY - SAFETY RISKS

Exhibit C - Evidence of Controlled Substance Distribution documents

Respondent MARGIE SAYEGH (my mother) is actively involved in the distribution of pharmaceutical controlled substances to my estranged husband, FAHED SAYEGH. By supplying these substances to a known abuser, Respondent is not only enabling his addiction and violence but is acting as a logistical partner in the Sayegh Generational Criminal Network. This conduct demonstrates that Respondent prioritizes the preservation of the family's illicit enterprise over the safety and life of her own daughter."

6. RETALIATION MOTIVE

I believe Respondent's threatening conduct toward Petitioner is motivated by a desire to protect the Sayegh Generational Criminal Network. Respondent (Nuha's mother) is aligned with her son-in-law, FAHED SAYEGH, acting as a willing enabler and 'Financial Architect' to maintain the family's illicit financial control. Petitioner ERIC BRAKEBILL JONES is the primary force uncovering this enterprise and facilitating Nuha Sayegh's escape. Respondent views Petitioner not merely as a family rival, but as an existential threat to the Sayegh criminal enterprise, and uses harassment to silence, intimidate, and force Petitioner to abandon his advocacy.

7. IMPACT ON MINOR CHILDREN

When my daughter, MIA (Age 13), reported this conversation, she appeared visibly distressed and stated she felt 'unsafe' around Respondent. This is not an isolated incident but part of a 15-year pattern. Respondent MARGIE SAYEGH acts as the 'Supply Chain' for the Sayegh Generational Criminal Network, specifically by selling controlled substances to my estranged husband, Fahed.

I repeatedly begged Respondent to stop selling drugs to Fahed because his physical abuse toward me inevitably peaked whenever she supplied him. She refused, choosing to profit from his addiction rather than protect her daughter or grandchildren. By exposing Mia to these threats and manipulating her during visitations, Respondent is grooming the child to accept this criminal dynamic and punishing her for our attempts to escape it. Mia's fear is a justified reaction to being used as a pawn in Respondent's illicit financial preservation strategy.

8. CONCLUSION

Based on the foregoing, I respectfully request that the Court grant Petitioner's request for a Civil Harassment Restraining Order against Respondent MARGIE SAYEGH to protect Petitioner from further threats, harassment, and stalking.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: December 19, 2025

Nuha Sayegh

Nuha Sayegh, Declarant

Received: 12/22/2025 4:16 PM

CH-109 Notice of Court Hearing

Clerk stamps date here when form is filed.

Electronically FILED
Superior Court of California
County of Los Angeles
12/23/2025 2:29 PM
David W. Slayton
Executive Officer/Clerk of Court,
By M. Markarian, Deputy Clerk

(1) Person Seeking Protection

a. Your Full Name:
Eric Brakebill Jones

Your Lawyer (if you have one for this case):
Name: _____ State Bar No.: _____
Firm Name: _____

b. Your Address *(If you have a lawyer, give your lawyer's information. If you do not have a lawyer and want to keep your home address private, you may give a different mailing address instead. You do not have to give telephone, fax, or email.)*

Address: 5634 Noel Dr
City: Temple City State: CA Zip: 91780
Telephone: (626) 348-3019 Fax: _____
Email Address: eric@recovery-compass.org

Fill in court name and street address:

Superior Court of California, County of
Los Angeles
Pasadena Courthouse
300 East Walnut Street
Pasadena, Ca 91101

Court fills in case number when form is filed.

Case Number: 25PDRO01741

(2) Person From Whom Protection Is Sought

Full Name: Margie Sayegh

The court will complete the rest of this form.

(3) Notice of Hearing

A court hearing is scheduled on the request for restraining orders against the person in (2):

Name and address of court if different from above:

Hearing Date → Date: 1/12/2026 Time: 8:30 am
Dept.: S Room: _____

To the person in (2):

- If you attend the hearing (in person, by phone, or by videoconference) and the judge grants a restraining order against you, the order will be effective immediately, and you could be arrested if you violate the order.
- If you do not attend the hearing, the judge may still grant the restraining order that could last up to five years. After you receive a copy of the order, you could be arrested if you violate the order.

(4) Temporary Restraining Orders *(Any orders granted are on form CH-110, served with this notice.)*

a. Temporary Restraining Orders for personal conduct and stay-away orders as requested in form CH-100, *Request for Civil Harassment Restraining Orders,* are *(check only one box below):*

(1) ☐ All **GRANTED** until the court hearing.
(2) ☑ All **DENIED** until the court hearing. *(Specify reasons for denial in b, below.)*
(3) ☐ Partly **GRANTED** and partly **DENIED** until the court hearing. *(Specify reasons for denial in b, below.)*

b. Reasons for denial of some or all of those personal conduct and stay-away orders as requested in form CH-100, *Request for Civil Harassment Restraining Orders,* are:

(1) ☑ The facts as stated in form CH-100 do not sufficiently show acts of violence, threats of violence, or a course of conduct that seriously alarmed, annoyed, or harassed the person in ① and caused substantial emotional distress.

(2) ☐ Other *(specify):* ☐ As stated on Attachment 4b.

⑤ Confidential Information Regarding Minor

a. ☐ A request to keep minor's information confidential was made (see form CH-160) and **GRANTED.** (*See form CH-165,* Order on Request to Keep Minor's Information Confidential, *served with this form.)*

b. **If the request was granted, the information described in item ⑦ on the order (form CH-165) must be kept CONFIDENTIAL. The disclosure or misuse of the information is punishable as a sanction, with a fine of up to $1,000 or other court penalities.**

⑥ Service of Documents for the Person in ①

At least ☑ **five** ☐ ____ **days before the hearing**, someone age 18 or older—**not you or anyone to be protected**—must personally give (serve) a court's file-stamped copy of this form CH-109 to the person in ② along with a copy of all the forms indicated below:

a. CH-100, *Request for Civil Harassment Restraining Orders* (file-stamped)

b. ☐ CH-110, *Temporary Restraining Order* (file-stamped) **IF GRANTED**

c. CH-120, *Response to Request for Civil Harassment Restraining Orders* (blank form)

d. CH-120-INFO, *How Can I Respond to a Request for Civil Harassment Restraining Orders?*

e. ☐ CH-170, *Notice of Order Protecting Information of Minor* and CH-165, *Order on Request to Keep Minor's Information Confidential* (file-stamped) **IF GRANTED**

f. ☐ Other *(specify):* _____

Date: 12/23/2025

Timothy Martella
JUDGE
Judicial Officer

Case Number:

To the Person in ① :

- The court cannot make the restraining orders after the court hearing unless the person in ② has been personally given (served) a copy of your request and any temporary orders. To show that the person in ② has been served, the person who served the forms must fill out a proof of service form. Form CH-200, *Proof of Personal Service,* may be used.
- For information about service, read form CH-200-INFO, *What Is "Proof of Personal Service"?*
- You may ask to reschedule the hearing if you are unable to find the person in ② and need more time to serve the documents, or for other good reasons. Read form CH-115-INFO, *How to Ask for a New Hearing Date.*
- You must attend the hearing if you want the judge to make any of the orders you requested on form CH-100, *Request for Civil Harassment Restraining Orders*. Bring any evidence or witnesses you have. For more information, read form CH-100-INFO, *Can a Civil Harassment Restraining Order Help Me?*

To the Person in ② :

- If you want to respond to the request for orders in writing, file form CH-120, *Response to Request for Civil Harassment Restraining Orders,* and have someone age 18 or older—**not you or anyone to be protected**—mail it to the person in ①.
- The person who mailed the form must fill out a proof of service form. Form CH-250, *Proof of Service by Mail,* may be used. File the completed form with the court before the hearing and bring a copy with you to the court hearing.
- Whether or not you respond in writing, go to the hearing if you want the judge to hear from you before making an order. You may tell the judge why you agree or disagree with the orders requested.
- You may bring witnesses and other evidence.
- At the hearing, the judge may make restraining orders against you that could last up to five years and may order you to turn in to law enforcement, or sell to or store with a licensed gun dealer, any firearms (guns) and firearm parts that you own or possess. This includes firearm receivers and frames, and any item that may be used as or easily turned into a receiver or frame (see Penal Code section 16531). If an order is granted, you will also be prohibited from owning, possessing, or buying body armor and will have to relinquish any body armor you have.
- If you are unable to attend your court hearing or need more time to prepare your case, you may ask to reschedule your court date. Read form CH-115-INFO, *How to Ask for a New Hearing Date.*



Request for Accommodations

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office or go to www.courts.ca.gov/forms for *Disability Accommodation Request* (form MC-410). (Civ. Code, § 54.8.)

(Clerk will fill out this part.)

—Clerk's Certificate—

I certify that this *Notice of Court Hearing* is a true and correct copy of the original on file in the court.

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Date: DEC 24 2025

Clerk, by S. Apodaca-Perez, Deputy

David W. Slayton

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CH-120 Response to Request for Civil Harassment Restraining Orders

Clerk stamps date here when form is filed.

Use this form to respond to the *Request* (form CH-100)

- Read *How Can I Respond to a Request for Civil Harassment Restraining Orders?* (form CH-120-INFO) to protect your rights.
- Fill out this form and take it to the court clerk.
- Have someone age 18 or older—**not you**—serve the person in (1) or his or her lawyer by mail with a copy of this form and any attached pages. *(Use form CH-250, Proof of Service by Mail.)*

Fill in court name and street address:

Superior Court of California, County of

Court fills in case number when form is filed.

Case Number:

(1) Person Seeking Protection

Full name of person seeking protection *(see form CH-100, item (1))*:

(2) Person From Whom Protection Is Sought

a. Your Name: _____

Your Lawyer *(if you have one for this case)*
Name: _____ State Bar No.: _____
Firm Name: _____

b. Your Address *(If you have a lawyer, give your lawyer's information. If you do not have a lawyer and want to keep your home address private, you may give a different mailing address instead. You do not have to give telephone, fax, or email.)*

Address: _____
City: _____ State: ____ Zip: _____
Telephone: _____ Fax: _____
Email Address: _____

Present your response and any opposition at the hearing. Write your hearing date, time, and place from form CH-109 item (3) here:

Hearing Date

Date: _____ Time: _____
Dept.: _____ Room: _____

If you were served with a Temporary Restraining Order, you must obey it until the hearing. At the hearing, the court may make orders against you that last for up to five years.

(3) ☐ Personal Conduct Orders

a. ☐ I agree to the orders requested.
b. ☐ I do not agree to the orders requested. *(Specify why you disagree in item (12) on page 4.)*
c. ☐ I agree to the following orders *(Specify below or in item (12) on page 4.)*

_____
_____

(4) ☐ Stay-Away Orders

a. ☐ I agree to the orders requested.
b. ☐ I do not agree to the orders requested. *(Specify why you disagree in item (12) on page 4.)*
c. ☐ I agree to the following orders *(specify below or in item (12) on page 4):*

_____
_____

5 ☐ Additional Protected Persons

a. ☐ I agree that the persons listed in item 3 of form CH-100 may be protected by the order requested.

b. ☐ I do not agree that the persons listed in item 3 of form CH-100 may be protected by the order requested.

6 Firearms (Guns), Firearm Parts, and Ammunition

If you were served with form CH-110, *Temporary Restraining Order,* you cannot own or possess any firearms (guns), firearm parts, or ammunition. This includes firearm receivers and frames, and any item that may be used as or easily turned into a receiver or frame (see Penal Code section 16531). (See item 7 of form CH-110.) You must sell to or store with a licensed gun dealer, or turn in to a law enforcement agency, any firearms (guns) or firearm parts in your immediate possession or control within 24 hours of being served with form CH-110. You must file a receipt with the court. You may use *Receipt for Firearms and Firearm Parts* (form CH-800) for the receipt.

a. ☐ I do not own or control any firearms (guns), firearm parts, or ammunition.

b. ☐ I ask for an exemption from the firearms prohibition under Code of Civil Procedure section 527.9(f) because carrying a firearm is a condition of my employment, and my employer is unable to reassign me to another position where a firearm is unnecessary. *(Explain):*

☐ *Check here if there is not enough space below for your answer. Put your complete answer on an attached sheet of paper and write "Attachment 6b—Firearms Surrender Exemption" as a title. You may use form MC-025,* Attachment.

_____

_____

_____

_____

c. ☐ I have turned in my firearms (guns) and firearm parts to the police or sold them to or stored them with a licensed gun dealer.

A copy of the receipt ☐ is attached. ☐ has already been filed with the court.

7 No Body Armor

If you were served with form CH-110, *Temporary Restraining Order*, you are prohibited from owning, possessing, or buying body armor. You must also relinquish any body armor you have in your possession.

(Check all that apply):

a. ☐ I do not own or have any body armor.

b. ☐ I have relinquished all body armor that I have in my possession.

c. ☐ I was granted an exception, or will ask for an exception, to have body armor. Note: This exception is granted by a chief of police or sheriff. See Penal Code section 31360(c). *(Attach a copy of the letter granting permission, if you have one.)*

8 ☐ Possession and Protection of Animals

a. ☐ I agree to the orders requested.
b. ☐ I do not agree to the orders requested. *(Specify why you disagree in item 12 on page 4.)*
c. ☐ I agree to the following orders *(specify below or in item 12 on page 4):*

9 ☐ Other Orders

a. ☐ I agree to the orders requested.
b. ☐ I do not agree to the orders requested. *(Specify why you disagree in item 12 on page 4.)*
c. ☐ I agree to the following orders *(specify below or in item 12 on page 4):*

10 ☐ Denial

I did not do anything described in item 7 of form CH-100. *(Skip to 12 .)*

11 ☐ Justification or Excuse

If I did some or all of the things that the person in 1 has accused me of, my actions were justified or excused for the following reasons *(explain):*

☐ *Check here if there is not enough space below for your answer. Put your complete answer on an attached sheet of paper and write "Attachment 11—Justification or Excuse" as a title. You may use form MC-025,* Attachment.

12 ☐ Reasons I Do Not Agree to the Orders Requested

Explain your answers to each order requested that you do not agree with.

☐ *Check here if there is not enough space below for your answer. Put your complete answer on an attached sheet of paper and write "Attachment 12—Reasons I Disagree" as a title. You may use form MC-025,* Attachment.

13 ☐ No Fee for Filing

a. ☐ I request that I not be required to pay the filing fee because the person in 1 claims in form CH-100 item 13 to be entitled to free filing.

b. ☐ I request that I not be required to pay the filing fee because I am eligible for a fee waiver. *(Form FW-001,* Request to Waive Court Fees, *must be filed separately.)*

14 ☐ Lawyer's Fees and Costs

a. ☐ I ask the court to order payment of my ☐ Lawyer's fees ☐ Court costs.
The amounts requested are:

Item	Amount	Item	Amount
	$		$
	$		$
	$		$

☐ *Check here if there are more items. Put the items and amounts on the attached sheet of paper and write "Attachment 14—Lawyer's Fees and Costs" for a title. You may use form MC-025,* Attachment.

b. ☐ I ask the court to deny the request of the person asking for protection that I pay his or her lawyer's fees and costs.

15 Number of pages attached to this form, if any: _____

Date: _____

_____ ▶ _____
Lawyer's name (if any) *Lawyer's signature*

I declare under penalty of perjury under the laws of the State of California that the information above and on all attachments is true and correct.

Date: _____

_____ ▶ _____
Type or print your name *Sign your name*

For your protection and privacy, please press the Clear This Form button after you have printed the form.

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CH-120-INFO How Can I Respond to a Request for Civil Harassment Restraining Orders?

What is a civil harassment restraining order?

It is a court order that prohibits you from doing certain things and going to certain places.

What does the order do?

The court can order you to:

- Not contact the person who asked for the order
- Stay away from that person and the person's home and workplace
- Not have any firearms (guns), firearm parts, ammunition, or body armor as long as the order is in effect. This includes firearm receivers and frames, and any item that may be used as or easily turned into a receiver or frame (see Penal Code section 16531).

  For more information about the items you would not be allowed to have, please see selfhelp.courts.ca.gov/restraining-orders/prohibited-items.

Who can ask for a civil harassment restraining order?

A person who is worried about safety because he or she has been or is being:

- Stalked
- Harassed
- Assaulted, including sexually, *or*
- Threatened with violence

I've been served with a request for civil harassment restraining orders. What do I do now?

Read the papers served on you very carefully. The *Notice of Court Hearing* tells you when to appear in court. There may also be a *Temporary Restraining Order* forbidding you from doing certain things. You must obey the order until the hearing.

What if I don't agree with what the order says?

You still must obey the order until the hearing. If you disagree with the orders the person is asking for, fill out form CH-120, *Response to Request for Civil Harassment Restraining Orders,* before your hearing date and file it with the court. If you need to include attachments, you can use form MC-025. You can get the forms from legal publishers or from the California Courts website at www.courts.ca.gov/forms. Forms may also be at your local courthouse or county law library.

What if I don't obey the order?

The police can arrest you. You can go to jail and pay a fine.

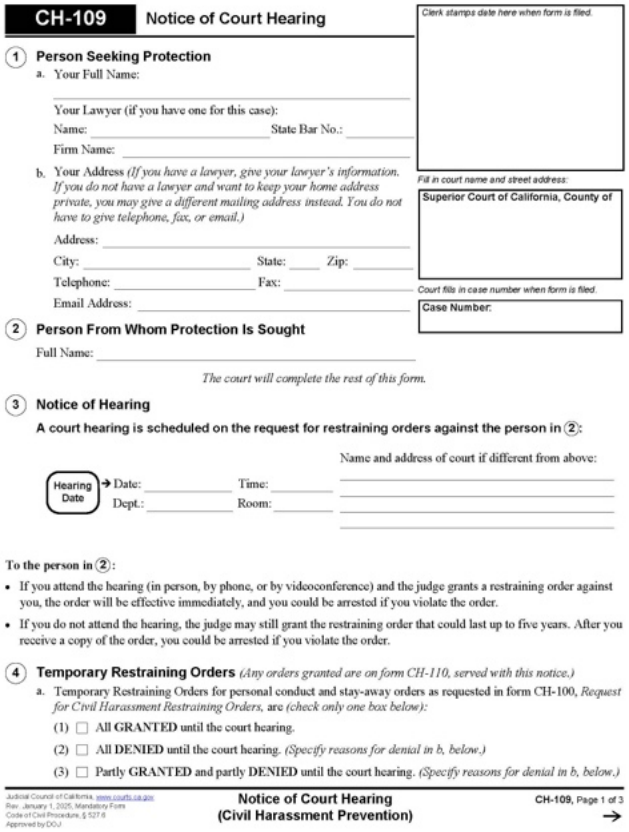
Do I have to serve the other person with a copy of my response?

Yes. Have someone age 18 or older—**not you**—mail a copy of completed form CH-120 to the person who asked for the order (or that person's lawyer). (This is called "service by mail.")

The person who serves the form by mail must fill out form CH-250, *Proof of Service by Mail.* Have the person who did the mailing sign the original. Take the completed form back to the court clerk or bring it with you to the hearing.

Should I go to the court hearing?

Yes. You should go to court on the date listed on form CH-109, *Notice of Court Hearing*. If you do not go to the hearing, the judge can make orders against you without hearing from you.



CH-109 Notice of Court Hearing

Clerk stamps date here when form is filed.

1 Person Seeking Protection

a. Your Full Name:

Your Lawyer (if you have one for this case):
Name: State Bar No.:
Firm Name:

b. Your Address (*If you have a lawyer, give your lawyer's information. If you do not have a lawyer and want to keep your home address private, you may give a different mailing address instead. You do not have to give telephone, fax, or email.*)
Address:
City: State: Zip:
Telephone: Fax:
Email Address:

Fill in court name and street address:
Superior Court of California, County of

Court fills in case number when form is filed.
Case Number:

2 Person From Whom Protection Is Sought
Full Name:

The court will complete the rest of this form.

3 Notice of Hearing
A court hearing is scheduled on the request for restraining orders against the person in 2:

Hearing Date → Date: Time:
Dept.: Room:

Name and address of court if different from above:

To the person in 2:
- If you attend the hearing (in person, by phone, or by videoconference) and the judge grants a restraining order against you, the order will be effective immediately, and you could be arrested if you violate the order.
- If you do not attend the hearing, the judge may still grant the restraining order that could last up to five years. After you receive a copy of the order, you could be arrested if you violate the order.

4 Temporary Restraining Orders (*Any orders granted are on form CH-110, served with this notice.*)
a. Temporary Restraining Orders for personal conduct and stay-away orders as requested in form CH-100, *Request for Civil Harassment Restraining Orders,* are (*check only one box below*):
(1) ☐ All GRANTED until the court hearing.
(2) ☐ All DENIED until the court hearing. (*Specify reasons for denial in b, below.*)
(3) ☐ Partly GRANTED and partly DENIED until the court hearing. (*Specify reasons for denial in b, below.*)

Judicial Council of California, www.courts.ca.gov
Rev. January 1, 2025, Mandatory Form
Code of Civil Procedure, § 527.6
Approved by DOJ

Notice of Court Hearing
(Civil Harassment Prevention)

CH-109, Page 1 of 3 →

CH-120-INFO How Can I Respond to a Request for Civil Harassment Restraining Orders?

How long does the order last?

If the court issued a temporary restraining order before the hearing, it will last until your hearing date. At that time, the court will decide to continue or cancel the order. Any order issued at the hearing can last for up to five years.

Do I need a lawyer?

Having a lawyer is always a good idea, but it is not required, and you are not entitled to a free, court-appointed attorney. Ask the court clerk about free and low-cost legal services and self-help centers in your county.

Will I see the person who asked for the order at the court hearing?

Yes. Assume that the person who is asking for the order will attend the hearing. Do not talk to him or her unless the judge or that person's attorney says that you can.

Can I bring a witness to the court hearing?

Yes. You can bring witnesses or documents that support your case to the hearing. But if possible, you should also bring the witnesses' written statements of what they saw or heard. Their statements must be made under penalty of perjury. You can use form MC-030 for this.

Information about the process is also available online.

See selfhelp.courts.ca.gov/CH-restraining-order.

For help in your area, contact:

[Local information may be inserted.]

What if I don't speak English?

When you file your papers, ask the clerk if a court interpreter is available. You can also use form INT-300, *Request for Interpreter (Civil)*, or a local court form or website to request an interpreter. For more information about court interpreters, go to selfhelp.courts.ca.gov/request-interpreter.

What if I have a gun?

If a restraining order is issued, you cannot own, possess, or have a firearm (gun), firearm parts, ammunition, or body armor while the order is in effect. If you have a firearm (gun) or firearm parts in your immediate possession or control, you must sell it to or store it with a licensed gun dealer, or turn it in to a law enforcement agency.

Can I agree with the protected person to cancel the order?

No. Once the order is issued, only the judge can change or cancel it. You or the protected person would have to file a request with the court to cancel the order.

What if I have a disability?

If you have a disability and need an accommodation while you are at court, you can use form MC-410, *Disability Accommodation Request*, to make your request. You can also ask the ADA Coordinator in your court for help. For more information, see form MC-410-INFO, *How to Request a Disability Accommodation for Court.*

Print this form Save this form

CH-250 Proof of Service by Mail

Clerk stamps date here when form is filed.

1 Name of Person Asking for Protection:

_____

2 Name of Person to Be Restrained:

_____

3 Notice to Server

The server must:

- Be 18 years of age or over.
- Not be listed in items 1, 2, or 3 of form CH-100, *Request for Civil Harassment Restraining Orders.*
- Mail a copy of all documents checked in 4 to the person in 5.

Fill in court name and street address:

Superior Court of California, County of

Fill in case number:

Case Number:

4 I (the server) am 18 years of age or over and live in or am employed in the county where the mailing took place. I mailed a copy of all documents checked below to the person in 5:

a. ☐ CH-120, *Response to Request for Civil Harassment Restraining Orders*
b. ☐ CH-130, *Civil Harassment Restraining Order After Hearing*
c. ☐ Other *(specify):* _____

_____

_____

_____

5 I placed copies of the documents checked above in a sealed envelope and mailed them as described below:

a. Name of person served: _____
b. To this address: _____
City: _____ State: _____ Zip: _____
c. Mailed on *(date):* _____
d. Mailed from *(city):* _____ (*state*): _____

6 Server's Information

Name: _____
Address: _____
City: _____ State: _____ Zip: _____
Telephone: _____
If you are a registered process server:
County of registration: _____ Registration number: _____

7 I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: _____

_____ ▶ _____
Type or print server's name *Server to sign here*

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